



Electronic Identification and Trust Services

STUDY AND AUDIT MANUAL · ENGLISH EDITION · PILOT (Articles 5a–5f)

Regulation (EU) No 910/2014, consolidated version of 18 October 2024
eIDAS and eIDAS 2.0 — Chapter II, Articles 5a to 5f

SOURCE AND VERIFICATION

Translated from the German study manual (231 pp.) against the official English text of the consolidated Regulation. Defined terms follow the 57 definitions of Article 3 verbatim. All 27 passages marked were checked character-for-character against the official English wording and are reproduced exactly; they are not translations made for this edition.

This document has no legal effect. Only the text published in the Official Journal of the European Union is authentic.

How to read a norm block

Every provision is set as one block with the same fields in the same order, so the eye learns where to look. Modality is colour and shape; priority is position at the page edge. They never share a channel, so neither can be mistaken for the other.

MODALITY — WHAT KIND OF NORM

SHALL	Unconditional duty.
SHALL NOT	Prohibition. Marked on three channels — the heaviest ink on the page.
MAY	Discretion or a right. Creates no duty unless exercised.
DEFINITION	Defines a term. Imposes no duty — the most common source of error.
COMMISSION MANDATE	Empowerment to adopt an implementing or delegated act.
REFERENCING PROVISION	Applies other articles by reference.
LEGAL EFFECT	Non-discrimination rule or legal presumption; addressed to courts.

PRIORITY — HOW HARD IT IS TESTED

L1	Core material. Actually asked in conformity assessments.
L2	Important for understanding the system.
L3	Procedural and peripheral provisions.

The bar at the trimmed page edge sits at a different height for each level, so the closed book shows them.

MARKS ON A CROSS-REFERENCE

✓	The quoted wording was checked character-for-character against the official English text.
●	A summary in this manual's own words; no wording was quoted.
	No mark: the reference is named and explained, but nothing is quoted or asserted as wording.

A

Electronic Identification

Chapter II · Articles 5a to 5f · Wallet, relying parties, certification, acceptance

AFTER THIS PART YOU SHOULD BE ABLE TO

- name the three routes by which a Member State may provide a European Digital Identity Wallet, and say who bears supervisory responsibility in each
- state which paragraphs of Article 5a are covered by certification under Article 5c — and which are not
- date the 24-month deadline in Article 5a(1) from the correct trigger, and name both implementing acts that start it
- distinguish what a relying party may request from what it must have registered beforehand
- explain why 'low' assurance creates no obligation to accept, while 'substantial' and 'high' do
- identify, for any provision in this Part, whether it binds a Member State, a wallet provider, a relying party or the Commission

SPACED REPETITION

- | | |
|---------------|---|
| Day 0 | Read the part; then recall the key points without the manual |
| Day 1 | Recall yesterday's key points — 15 min |
| Day 3 | Audit checks of the part, answers covered — 20 min |
| Day 7 | Only the items marked hard, plus the deadlines — 20 min |
| Day 16 | Mixed across all parts so far, deliberately out of order — 30 min |
| Day 35 | Refresh; look up what is still missing — 30 min |

5a · Abs. 1

SHALL

L1

TOPIC **Obligation to provide the European Digital Identity Wallet**
ADDRESSEE *Member State*
CONTENT Each Member State (MS) shall provide **AT LEAST ONE** European Digital Identity Wallet. Purpose according to the wording: secure, trusted and seamless cross-border access to public **AND** private services, while having full control over their data.

PURPOSE *Without an obligation to provide it, the European Digital Identity Wallet would remain a non-binding offer; only the obligation brings about the EU-wide rollout.*
DEADLINE **24 months after the entry into force of the implementing acts under Article 5a(23) AND Article 5c(6) – the period does NOT run from the date of the Regulation**
CROSS-REFERENCES **Article 5a(23) Implementing act on the core European Digital Identity Wallet requirements**

The Regulation's most important empowering provision in practice. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – that is the legal basis of the Architecture and Reference Framework. It is at the same time one of the two triggers of the 24-month period under paragraph 1. Numerous further provisions (Article 5b(11), Article 5d(7), Article 5e(5), Article 45d(5), Article 45e(2), Article 45f(6) and (7)) expressly require alignment with that act.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23) eIDAS

Relevance here: Without that act, paragraphs 4, 5, 8 and 18 cannot be audited; it is also the anchor for the time limit under paragraph 1.

Article 52 eIDAS Entry into force

Stagger the date of application: the general rule is 1 July 2016; the empowering provisions referred to in paragraph 2, point (a) already apply from 17 September 2014; Articles 7, 8(1) and (2), 9, 10, 11 and 12(1) apply from the date of application of the implementing acts under Article 8(3) and Article 12(8); and the recognition obligation under Article 6 takes effect only three years thereafter.

Article 5c(6) Implementing act on European Digital Identity Wallet certification

Establishes reference standards, specifications and procedures for the certification under paragraphs 1, 2 and 3. Together with Article 5a(23), the second trigger of the 24-month period. Without a uniform certification scheme, a European Digital Identity Wallet certificate from one Member State would not be reliable in another – and the list under Article 5d would have no common yardstick.

Relevance here: The second trigger of the same period – if either of the two acts is missing, the 24-month clock under paragraph 1 does not start to run at all.

Article 5f(2) Acceptance obligation of certain private entities

Covers private relying parties which, under Union law, national law or by contract, are required to carry out strong user authentication – the areas named include transport, energy, banking, financial services, social security, health, digital infrastructure, education and telecommunications. Microenterprises and small enterprises are exempt; acceptance takes place only upon the voluntary request of the user. Time limit: 36 months from the same anchor as Article 5a(1).

“Where private relying parties that provide services, with the exception of microenterprises and small enterprises”

✓ Article 5f(2)

AUDIT CHECK **Is the European Digital Identity Wallet provided under an electronic identification (eID) scheme at assurance level high (paragraph 11)?**
KEY POINT **'At least one' – a Member State (MS) may have several, but never zero.**

5a · Abs. 2 a-c

DEFINITION

L2

TOPIC

The three ways of providing the European Digital Identity Wallet

ADDRESSEE Member State

CONTENT Three permissible models: (a) directly by the Member State (MS), (b) under a mandate from the MS, (c) independently of the MS but recognised by it. No ranking, no preference.

PURPOSE *Permits private European Digital Identity Wallet providers without giving up the responsibility of the State – in all three cases the Member State remains the guarantor.*

CROSS-REFERENCES

Article 5a(14)

User control and logical separation
Prohibits the European Digital Identity Wallet provider from collecting usage information that is not necessary and from combining European Digital Identity Wallet data with data from its own other services or from third-party services. The provider must in addition keep the data logically separate from all other holdings. Where provision is private under paragraph 2, point (b) or (c), Article 45h(3) (functional separation) applies in addition, mutatis mutandis. This is the only paragraph outside paragraphs 4, 5 and 8 that is expressly certified.

“Personal data relating to the provision of the European Digital Identity Wallet shall be kept logically separate from any other data held by the provider of the European Digital Identity Wallet”

✓ Article 5a(14)

Article 45h(3) eIDAS Functional separation

Requires providers to deliver qualified electronic attestation of attributes services in such a way that they are functionally separate from their other services. Via Article 5a(14), that provision applies mutatis mutandis to private European Digital Identity Wallet providers as well.

Relevance here: It applies only where provision is private under paragraph 2, point (b) or (c), and adds functional separation to logical separation.

Article 4 eIDAS

Internal market principle Prohibits Member States from restricting the provision of trust services from another Member State for reasons falling within the scope of the Regulation. Paragraph 2 requires that products and services lawfully provided in one Member State be able to circulate freely in the internal market. The general rule is spelled out for qualified services in Article 24a.

Article 46a eIDAS Supervision of the European Digital Identity Wallet framework

Requires Member States to designate supervisory bodies for European Digital Identity Wallet providers and to notify them to the Commission. Those bodies monitor compliance with the requirements, may require evidence and may order measures. Before eIDAS 2.0 there was no comparable supervisory structure for the electronic identification (eID) pillar.

AUDIT CHECK

Which model does the Member State (MS) use – and who is then the addressee of supervision under Article 46a?

KEY POINT

State, mandate, recognition – three routes, one responsible party.

5a · Abs. 3

SHALL

L2

TOPIC

Open-source obligation for the source code

ADDRESSEE

European Digital Identity Wallet provider / Member State

CONTENT

The source code of the **APPLICATION SOFTWARE COMPONENTS** shall be open-source licensed. Exception: for duly justified reasons a Member State (MS) may provide that the source code of specific components other than those installed on user devices is **NOT** disclosed (server side).

PURPOSE

Verifiability instead of a leap of faith – the security of an identity application must be publicly auditable.

CROSS-REFERENCES

Article 5c Certification of the European Digital Identity Wallet

Provides that the European Digital Identity Wallet and the underlying electronic identification (eID) scheme are certified by designated conformity assessment bodies, and divides up the assessment: cybersecurity requirements via the schemes under the Cybersecurity Act, everything else via national certification schemes, the drafts of which are to be submitted to the Cooperation Group. In addition, it governs the five-year limit with a two-yearly vulnerability assessment, the optional certification under the GDPR, the implementing act and a delegated act on the criteria for the assessment bodies.

AUDIT CHECK

Is the client source code in fact published under an open-source licence? Is every exception documented and justified?

KEY POINT

Client open, server may stay closed – but only with justification.

5a · Abs. 4 (Einleitung) **SHALL**

■ L1

TOPIC User functions – principle

ADDRESSEE *European Digital Identity Wallet (technical) / European Digital Identity Wallet provider*

CONTENT The European Digital Identity Wallet **SHALL** enable the user to perform functions (a) to (g) in a manner that is user-friendly, transparent and traceable by the user. Points (a) to (g) are **CUMULATIVE**.

PURPOSE *A European Digital Identity Wallet that is secure but unusable will not be used – here usability is a legal obligation, not an optional extra.*

CROSS-REFERENCES **Article 5a(23) Implementing act on the core European Digital Identity Wallet requirements**

The Regulation's most important empowering provision in practice. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – that is the legal basis of the Architecture and Reference Framework. It is at the same time one of the two triggers of the 24-month period under paragraph 1. Numerous further provisions (Article 5b(11), Article 5d(7), Article 5e(5), Article 45d(5), Article 45e(2), Article 45f(6) and (7)) expressly require alignment with that act.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23) eIDAS

Relevance here: Without that act, paragraphs 4, 5, 8 and 18 cannot be audited; it is also the anchor for the time limit under paragraph 1.

AUDIT CHECK **Are all seven functions (a) to (g) present – or is one missing?**

KEY POINT **Paragraph 4 = what the USER can do. Paragraph 5 = what the TECHNOLOGY must be able to do.**

5a · Abs. 4 a

SHALL

L1

TOPIC

Managing attributes + selective disclosure

ADDRESSEE

User (entitled) / European Digital Identity Wallet

CONTENT

Securely requesting, obtaining, selecting, combining, storing, deleting, sharing and presenting electronic attestations of attributes (EAA) and person identification data – under the **SOLE** control of the user, online and, where appropriate, in offline mode. Selective disclosure **SHALL** be possible.

PURPOSE

Data minimisation put into practice: proof of age without a date of birth, proof of residence without a street address.

CROSS-REFERENCES

Article 5b(3) Prohibition of over-asking

Makes the registration information under paragraph 2, point (c) legally binding: the registered scope of data is at the same time the maximum permissible scope. Purpose limitation under data protection law thereby becomes enforceable technically and by supervision for the first time, instead of merely being asserted.

“shall not request users to provide any data other than that indicated pursuant to paragraph 2, point (c)”

✓ Article 5b(3)

Article 45g eIDAS

Issuance of electronic attestations of attributes to Wallets Paragraph 1 requires ALL providers of electronic attestations of attributes to enable European Digital Identity Wallet users to request, obtain, store and manage them irrespective of the Member State of provision. Paragraph 2 requires in addition – but only of providers of QUALIFIED electronic attestations of attributes – an interface to the European Digital Identity Wallet. Without that bridge the European Digital Identity Wallet would remain empty.

AUDIT CHECK

Can the user selectively disclose individual attributes – or only the entire data record?

KEY POINT

Selective disclosure is the core: prove age without disclosing the date of birth.

5a · Abs. 4 b

SHALL

L2

TOPIC

PseudonymsADDRESSEE *User / European Digital Identity Wallet*CONTENT Generating pseudonyms and storing them **ENCRYPTED** and **LOCALLY** within the European Digital Identity Wallet.PURPOSE *Pseudonyms are effective in data protection terms only if they are not held by the provider – local + encrypted is the condition.*

CROSS-REFERENCES

Article 5b(9)

Responsibility for validation and protection of pseudonyms Places responsibility for the authentication and validation of the data presented on the relying party – not on the European Digital Identity Wallet provider. The second sentence also prohibits refusing the use of pseudonyms unless a legal provision requires identification by real name. Article 5 is thereby protected against being circumvented in practice.

Article 5 eIDAS Use of pseudonyms

A single, unnumbered sentence: without prejudice to specific identification obligations and to the legal effect of pseudonyms under national law, the use of pseudonyms chosen by the user shall not be prohibited in electronic transactions. The Article has NO paragraphs. It is given specific effect in Article 5a(4), point (b), Article 5b(9) and Article 32(1), point (e).

Article 2 eIDAS

Scope Covers notified electronic identification (eID) schemes, the Wallets provided by the Member States and trust service providers established in the Union. Expressly NOT covered are trust services provided, under national law or under an agreement, exclusively within a closed group of participants – enterprise-internal PKI therefore falls outside. Paragraph 3 makes clear that the Regulation does not affect national contract law or the GDPR.

AUDIT CHECK **Are pseudonyms stored locally on the device and in encrypted form?**

KEY POINT

Pseudonym = local + encrypted. Held server-side, it would not be one.

5a · Abs. 4 c

SHALL

 L2

TOPIC

European Digital Identity Wallet-to-European Digital Identity Wallet interaction

ADDRESSEE *User / European Digital Identity Wallet*

CONTENT Securely authenticating **ANOTHER** person's European Digital Identity Wallet and receiving and sharing person identification data (**PID**) and electronic attestations of attributes (EAA) between two Wallets.

PURPOSE *Person-to-person attestations (tenancy agreement, contract of sale, power of attorney) without a detour via a service provider.*

CROSS-REFERENCES

Article 5a(5) Mandatory technical characteristics

The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, European Digital Identity Wallet-to-European Digital Identity Wallet, relying party (RP) authentication, verification of authenticity, erasure requests, reporting to authorities, creation of qualified electronic signatures) – in effect the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes (EAA), point (d) mandates assurance level high (LoA high) and point (g) the free-of-charge qualified electronic signature for natural persons.

AUDIT CHECK

Is person-to-person (P2P) interaction implemented, or only the classic user-to-relying-party flow?

KEY POINT

The Wallet is not only an identity document, but also a counterparty.

5a · Abs. 4 d

SHALL

L1

TOPIC

Dashboard and transaction log

ADDRESSEE

User / European Digital Identity Wallet

CONTENT

Access to a log of **ALL** transactions via a common dashboard, so that the user can (i) view all relying parties (**RP**) and the data shared, (ii) easily request erasure pursuant to Article 17 GDPR, (iii) easily report unlawful or suspicious requests for data to the national data protection authority.

PURPOSE

Without a transparency tool the user cannot exercise the 'sole control' under paragraph 4, point (a) at all.

CROSS-REFERENCES

Article 17 GDPR

Right to erasure – right to be forgotten
Paragraph 1 gives the data subject the right to obtain erasure without undue delay, inter alia where the data are no longer necessary for the purposes of the processing, where consent has been withdrawn, where an objection has been lodged or where the processing was unlawful. Paragraph 2 requires other controllers to be informed where the data have been made public. Paragraph 3 sets out exceptions, for example for legal obligations and for the establishment or exercise of legal claims. Link to eIDAS: Article 5a(4), point (d)(ii) eIDAS requires the user to be able to make that erasure request EASILY, directly from the European Digital Identity Wallet dashboard – the right is thus translated into an operating function. Summary of content, not verified against the original text

● summary, not verified against the original

Article 5a(5) Mandatory technical characteristics

The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, European Digital Identity Wallet-to-European Digital Identity Wallet, relying party (RP) authentication, verification of authenticity, erasure requests, reporting to authorities, creation of qualified electronic signatures) – in effect the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes (EAA), point (d) mandates assurance level high (LoA high) and point (g) the free-of-charge qualified electronic signature for natural persons.

AUDIT CHECK

Does the dashboard contain all three functions (viewing, erasure request, reporting) – or only the history?

KEY POINT

Dashboard = view, erase, report. Three buttons, not one.

5a · Abs. 4 e

SHALL

L1

TOPIC **Signing and sealing from the European Digital Identity Wallet**

ADDRESSEE *User / European Digital Identity Wallet*

CONTENT Signing by means of qualified electronic signatures or sealing by means of qualified electronic seals.

PURPOSE *Connects the electronic identification (eID) pillar (Chapter II) directly with the trust services pillar (Chapter III) – the European Digital Identity Wallet becomes a signature application.*

CROSS-REFERENCES **Article 5a(5) Mandatory technical characteristics**

The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, European Digital Identity Wallet-to-European Digital Identity Wallet, relying party (RP) authentication, verification of authenticity, erasure requests, reporting to authorities, creation of qualified electronic signatures) – in effect the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes (EAA), point (d) mandates assurance level high (LoA high) and point (g) the free-of-charge qualified electronic signature for natural persons.

Article 25 eIDAS

Legal effects of electronic signatures
Contains two sentences of far-reaching significance: paragraph 1 prohibits denying an electronic signature legal effect and admissibility as evidence solely on the ground that it is in electronic form or that it does not meet the requirements for qualified electronic signatures. Paragraph 2 gives the qualified electronic signature the equivalent legal effect of a handwritten signature. The former paragraph 3 was deleted by eIDAS 2.0.

Article 29a eIDAS Qualified service for the management of remote electronic signature creation devices

Makes the server-side management of signature keys a qualified trust service in its own right, subject to three conditions: generation or management of the electronic signature creation data on behalf of the signatory; duplication of that data solely for back-up purposes, at the same level of security and in no more copies than strictly necessary; and compliance with all requirements set out in the certification report under Article 30. Grandfathering applies until 21 May 2026.

AUDIT CHECK **Is the qualified electronic signature created by means of a certified qualified electronic signature creation device (QSCD) or by a qualified trust service provider (QTSP) under Article 29a?**

KEY POINT **The Wallet is the bridge between Chapter II and Chapter III.**

5a · Abs. 4 f-g

SHALL

☐ L3

TOPIC

Data export and data portability

ADDRESSEE

User / European Digital Identity Wallet

CONTENT

(f) Download of the user's data, electronic attestations of attributes (EAA) and configurations – to the extent technically feasible. (g) Exercise of the user's rights to data portability.

PURPOSE

Prevents lock-in to a single European Digital Identity Wallet provider; implements Article 20 of Regulation (EU) 2016/679 (GDPR) in the context of the European Digital Identity Wallet.

CROSS-REFERENCES

Article 20 GDPR

Right to data portability.

The data subject may receive the personal data concerning him or her in a structured, commonly used and machine-readable format and transmit that data to another controller, provided that the processing is based on consent or on a contract and is carried out by automated means. Where technically feasible, there is a right to have the data transmitted directly from one controller to another. Relationship to eIDAS: Article 5a(4), points (f) and (g), eIDAS implements this for the European Digital Identity Wallet – point (f) being qualified by 'to the extent technically feasible', point (g) not. The purpose is to avoid lock-in to a European Digital Identity Wallet provider. Summary of content, not verified against the original text

summary, not verified against the original

AUDIT CHECK

Is there a working export path – and is the 'technically feasible' limitation documented?

KEY POINT

Point (f) is qualified ('to the extent technically feasible'), point (g) is not.



5a · Abs. 5 (Einleitung) **SHALL**

L1

TOPIC Mandatory technical characteristics – principle**ADDRESSEE** *European Digital Identity Wallet (technical) / European Digital Identity Wallet provider***CONTENT** The European Digital Identity Wallet **SHALL IN PARTICULAR** meet the requirements in points (a) to (g). 'In particular' = not exhaustive; the implementing act under paragraph 23 supplements them.**PURPOSE** *Paragraph 4 describes the user-facing view, paragraph 5 the internal technical view – only the two together yield an auditable European Digital Identity Wallet.***CROSS-REFERENCES Article 5a(23)**

Implementing act on the core European Digital Identity Wallet requirements for the European Digital Identity Wallet. The Regulation's most important empowering provision for practical purposes. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – this is the legal basis of the Architecture and Reference Framework. It is at the same time one of the two triggers of the 24-month deadline in paragraph 1. Numerous further provisions (5b(11), 5d(7), 5e(5), 45d(5), 45e(2), 45f(6) and (7)) expressly require alignment with that act. Significance here: without that act, paragraphs 4, 5, 8 and 18 cannot be audited; it is at the same time the deadline anchor of paragraph 1.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23) eIDAS

Article 5c(1) Subject matter of certification.

Defines exhaustively what is certified: the conformity of the European Digital Identity Wallet AND of the electronic identification scheme with Article 5a(4), (5) and (8), the logical separation under paragraph 14 and, where applicable, the standards referred to in paragraph 24. Everything else in Article 5a is subject to supervision under Article 46a, not to certification. The sequence 4-5-8-14 is the practical mnemonic anchor.

AUDIT CHECK **Are paragraphs 4, 5, 8 and the logical separation under paragraph 14 covered by the certificate under Article 5c?****KEY POINT** **Remember: what is certified is 4, 5, 8 + 14 – not the whole Article.**

5a · Abs. 5 a i-xi SHALL

L1

TOPIC **Common protocols and interfaces**

ADDRESSEE *European Digital Identity Wallet (technical)*

CONTENT Eleven interface cases: (i) issuance of person identification data (PID)/electronic attestations of attributes (EAA)/certificates; (ii) requesting and validating by relying parties **(Rp)**; (iii) sharing and presentation (including selectively disclosed data, online/offline mode); (iv) user interaction + display of the EU Digital Identity Wallet Trust Mark; (v) secure onboarding of the user in accordance with paragraph 24; (vi) European Digital Identity Wallet-to-European Digital Identity Wallet; (vii) authentication of relying parties in accordance with Article 5b; (viii) verification by relying parties of the authenticity and validity of the European Digital Identity Wallet; (ix) requests for erasure pursuant to Article 17 GDPR; (x) reporting to the data protection authority; (xi) creation of qualified electronic signatures (QES)/qualified electronic seals by means of qualified electronic signature creation devices **(QSCD)**.

PURPOSE *Without uniform protocols, 27 mutually non-interoperable Wallets would emerge – interoperability would be merely asserted.*

CROSS-REFERENCES **ARF Architecture and Reference Framework of the European Digital Identity Wallet.**
Not a legal act, but the technical reference architecture developed in the context of the implementing acts under Article 5a(23) eIDAS. It describes the roles, data models, protocols and trust model of the European Digital Identity Wallet, drawing on formats such as ISO/IEC 18013-5 (mobile driving licences) and W3C Verifiable Credentials. Relationship to eIDAS: it fills the eleven interface cases of Article 5a(5), point (a), (i) to (xi), eIDAS with concrete specifications. Only what the implementing act takes over becomes legally binding. Summary of content, not verified against the original text

● summary, not verified against the original

Article 5a(23)
Implementing act on the core European Digital Identity Wallet requirements for the European Digital Identity Wallet. The Regulation's most important empowering provision for practical purposes. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – this is the legal basis of the Architecture and Reference Framework. It is at the same time one of the two triggers of the 24-month deadline in paragraph 1. Numerous further provisions (5b(11), 5d(7), 5e(5), 45d(5), 45e(2), 45f(6) and (7)) expressly require alignment with that act. Significance here: without that act, paragraphs 4, 5, 8 and 18 cannot be audited; it is at the same time the deadline anchor of paragraph 1.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23) eIDAS

AUDIT CHECK **Are all eleven interfaces covered by the scope of certification?**

KEY POINT **Eleven interfaces, (i) to (xi) – that is the ARF table of contents.**

5a · Abs. 5 b

SHALL NOT

L1

TOPIC

No feedback to the issuer of the electronic attestation of attributesADDRESSEE *European Digital Identity Wallet (technical)*

CONTENT The European Digital Identity Wallet **SHALL ENSURE** that, after issuance, **N**o information whatsoever about the use of those electronic attestations is provided to trust service providers of electronic attestations of attributes (EAA).

PURPOSE *Prevents the 'phone-home' problem: the issuer of the credential must not be able to observe where the credential is used.*

CROSS-REFERENCES

Article 5a(16)

Unlinkability in the technical framework. Point (a) prohibits providers of electronic attestations of attributes or any other party from obtaining, after issuance of the attestation of attributes, data that would allow transactions or user behaviour to be tracked, linked or correlated. Point (b) requires techniques which ensure unlinkability where identification of the user is not needed. Whereas paragraph 5, point (b), prohibits observation of the use, paragraph 16 prohibits the bringing together of data – technically this leads to techniques such as selective disclosure and zero-knowledge proofs.

Article 45h eIDAS

Additional rules for services of electronic attestation of attributes. Prohibits providers of qualified and non-qualified attestation services from combining personal data from those services with data from other services offered by them or by their business partners. Paragraph 2 requires the logical separation of that data from all other data held; paragraph 3 requires the functional separation of the qualified service from the provider's other services.

AUDIT CHECK

Can the issuer of the electronic attestation of attributes technically detect when and where its attestation was presented?

KEY POINT

The issuer must not be able to observe. No phone-home.

5a · Abs. 5 c

SHALL

L1

TOPIC **Authentication of relying parties**

ADDRESSEE *European Digital Identity Wallet (technical)*

CONTENT Ensure that relying parties **(Rp)** can be authenticated and identified by implementing authentication mechanisms in accordance with Article 5b.

PURPOSE *Mutual authentication: it is not only the user who identifies himself or herself, the service too must identify itself – protection against phishing relying parties.*

CROSS-REFERENCES **Article 5b(7) Common identification mechanism.**
Obliges the Member State (MS) to provide a common mechanism for allowing the identification and authentication of relying parties, as referred to in Article 5a(5), point (c). Twenty-seven different procedures would be unmanageable across borders.

Article 5b(8) Self-identification towards the user.
Obliges the relying party to identify itself to the user. Before releasing data, the user is to know to whom the data is being given – protection against phishing and impersonation.

Article 5a(8) Free-of-charge validation mechanisms.
Requires the Member State to provide two free-of-charge verification paths running in opposite directions: point (a) allows verification that a presented European Digital Identity Wallet is authentic and valid; point (b) allows the user to verify that the requesting relying party is registered and authentic. Without this two-way verifiability, Article 5b(8) (self-identification of the relying party) could not be verified. Forms part of the subject matter of certification under Article 5c(1).

AUDIT CHECK **Does the European Digital Identity Wallet actively verify the registration and identity of the requesting relying party?**

KEY POINT **Two-way: the user shows the Wallet, the relying party shows its registration.**

5a · Abs. 5 d

SHALL

L1

TOPIC **Assurance level 'high' mandatory**

ADDRESSEE *European Digital Identity Wallet (technical)*

CONTENT The European Digital Identity Wallet **SHALL** meet the requirements set out in Article 8 with regard to assurance level **HIGH**, in particular as applied to the requirements for identity proofing and verification and for electronic identification means management and authentication.

PURPOSE *The European Digital Identity Wallet is the starting point for qualified electronic signatures and for access to public sector services – a lower assurance level would devalue the entire chain.*

CROSS-REFERENCES **Article 8(2) eIDAS**

The three assurance levels. Contains definitions only, no obligations to act – a frequent source of error. The scale is calibrated to the effect against identity misuse: 'low' reduces the risk, 'substantial' reduces it substantially, 'high' prevents it. The substantive requirements only follow from the implementing act under paragraph 3, implemented by Implementing Regulation (EU) 2015/1502.

“The assurance levels low, substantial and high shall meet respectively the following criteria”

✓ Article 8(2)

Article 5a(11) eIDAS Provision at assurance level high.

Provides that European Digital Identity Wallets are to be provided under an electronic identification scheme with assurance level high. In law the European Digital Identity Wallet is therefore an electronic identification means at assurance level high and not a special object – subject, however, to the exceptions in paragraph 22.

Article 24(1a) eIDAS

Four methods of identity verification. Exhaustive list: (a) a European Digital Identity Wallet or a notified electronic identification means with assurance level high; (b) a certificate of a qualified electronic signature or of a qualified electronic seal issued in accordance with point (a), (c) or (d); (c) other methods which ensure a high level of confidence, the conformity of which is confirmed by a conformity assessment body; (d) physical presence. Point (c) is the route for video identification and comparable remote procedures – but only with confirmation by a conformity assessment body (CAB).

AUDIT CHECK **Is there evidence of conformity with assurance level high (LoA high) under Implementing Regulation (EU) 2015/1502?**

KEY POINT **Wallet = assurance level high. Always. Without exception.**

5a · Abs. 5 e

SHALL

☐ L3

TOPIC **Embedded disclosure policies**

ADDRESSEE *European Digital Identity Wallet (technical)*

CONTENT In the case of electronic attestations of attributes (EAA) with embedded disclosure policies, an appropriate mechanism **SHALL** inform the user that the requesting relying party **(RP)** or the requesting user has the permission to access that attestation.

PURPOSE *The user is to be able to recognise whether a request is legitimate before releasing data.*

CROSS-REFERENCES

Annex V
Annex V – qualified electronic attestations of attributes. Nine mandatory items, (a) to (i). The core is point (d): the attested attributes, including their scope. Point (g) requires – unlike Annexes I and III – a QUALIFIED electronic signature or a qualified electronic seal of the issuing qualified trust service provider (QTSP).

Article 5b(2) Minimum content of the relying party's registration.
The relying party shall provide the information necessary for authentication, its contact details and – point (c) – the intended use, including an indication of the data to be requested. Point (c) is the anchor of purpose limitation: it defines the permissible scope of requests, to which paragraph 3 binds the relying party.

AUDIT CHECK **Is the relying party's access permission visibly displayed to the user?**

KEY POINT **Inform first, then release.**



5a · Abs. 5 f

SHALL

L1

TOPIC

Uniqueness of the person identification data

ADDRESSEE

European Digital Identity Wallet (technical) / Member State (MS)

CONTENT

The person identification data **(PID)** available from the electronic identification scheme shall **UNIQUELY** represent the associated natural or legal person (or the natural person representing that person).

PURPOSE

Without uniqueness, cross-border identity matching under Article 11a fails – duplicate identities arise.

CROSS-REFERENCES

Article 5a(18)

Notification obligations towards the Commission. Names five items to be notified: the body responsible for the list of relying parties, together with the location of that list; the bodies responsible for the provision of the Wallets; the bodies responsible for associating the person identification data; the mechanism allowing for the validation of that data and of the identity of the relying parties; and the mechanisms by which to validate the authenticity and validity of the European Digital Identity Wallet. The Commission makes this available to the public through a secure channel, in electronically signed or sealed form suitable for automated processing.

Article 11a eIDAS Cross-border identity matching. New in eIDAS 2.0.

Obliges Member States, where they are themselves relying parties for cross-border services, to ensure identity matching for natural persons using a notified electronic identification means or a European Digital Identity Wallet. Paragraph 2 requires technical and organisational measures for a high level of protection of the matching data and expressly the prevention of user profiling. Paragraph 3 contains the empowerment to adopt an implementing act.

Article 3 eIDAS

Definitions. Contains the legal definitions in points 1 to 57, supplemented by the lettered points inserted by eIDAS 2.0 such as 5a, 16a and 21a. Particularly important in practice: point 3 person identification data, point 5a user, point 6 relying party, point 16 trust service, point 20 qualified trust service provider, point 42 electronic attestation of attributes, point 45 authentic source and point 46 the public sector body responsible for an authentic source.

AUDIT CHECK

Has the mechanism for associating the person identification data been notified to the Commission under paragraph 18, point (c)?

KEY POINT

Unique means: one person, one data record, resolvable EU-wide.

5a · Abs. 5 g + UAbs. 2 SHALL

■ L1

TOPIC **Free-of-charge qualified electronic signatures for natural persons**

ADDRESSEE *European Digital Identity Wallet provider / Member State (MS)*

CONTENT All **NATURAL** persons shall be offered the ability to sign by means of qualified electronic signatures (QES) **BY DEFAULT** and **FREE OF CHARGE**. Second subparagraph: Member States (MS) **MAY** provide for proportionate measures to limit the free-of-charge use to **NON-PROFESSIONAL** purposes.

PURPOSE *Makes the qualified electronic signature practically attainable for private individuals for the first time; the exception prevents undertakings from using the free-of-charge service as business infrastructure.*

CROSS-REFERENCES **Article 25(2) eIDAS** **Equivalence of the qualified electronic signature with a handwritten signature.**

The most consequential sentence of signature law in practice: a qualified electronic signature has the same legal effect as a handwritten signature. Advanced electronic signatures do not achieve that effect – not even on the basis of a qualified certificate. In German law, Section 126a BGB is the counterpart.

“A qualified electronic signature shall have the equivalent legal effect of a handwritten signature”

✓ Article 25(2)

Article 5a(13) eIDAS **Free of charge.**

Provides that the issuance, use and revocation of the European Digital Identity Wallet shall be free of charge to all natural persons. All three operations are covered, not only issuance.

Article 29a eIDAS **Qualified service for the management of remote electronic signature creation devices.**

Makes the server-side management of signature keys a qualified trust service in its own right, subject to three conditions: generation or management of the electronic signature creation data on behalf of the signatory; duplication of that data for back-up purposes only, at the same security level and in no more copies than strictly necessary; and compliance with all requirements set out in the certification report under Article 30. Grandfathering applies until 21 May 2026.

AUDIT CHECK **Is the qualified electronic signature actually available to all natural persons BY DEFAULT – without separate activation – and free of charge? How is the delimitation of 'professional' use regulated?**

KEY POINT **Free QES for all natural persons BY DEFAULT – MS MAY limit it to non-professional use.**

5a · Abs. 6

SHALL

 L2

TOPIC **Informing users of security breaches**

ADDRESSEE *Member State*

CONTENT The Member State shall inform users **WITHOUT DELAY** of any security breach that could have entirely or partially compromised their European Digital Identity Wallet or its contents – in particular where the European Digital Identity Wallet has been suspended or revoked pursuant to Article 5e.

PURPOSE *The user must be able to stop relying on a compromised European Digital Identity Wallet.*

DEADLINE **without delay**

CROSS-REFERENCES **Article 5e Security breach of European Digital Identity Wallets**
Governs the emergency case: suspension without undue delay, immediate withdrawal where the severity so justifies, and information of users, single points of contact, relying parties and the Commission. If the breach is not remedied within three months, the European Digital Identity Wallets shall be withdrawn and their validity revoked. Once the breach has been remedied, provision shall be re-established; the Commission shall update the list referred to in Article 5d without undue delay.

Article 46c eIDAS Single points of contact
Requires every Member State to designate, make public and notify to the Commission a single point of contact for trust services, European Digital Identity Wallets and notified electronic identification schemes. Cross-border supervision needs a defined contact point; the single point of contact is, among other things, an addressee of the notifications under Article 5e.

AUDIT CHECK **Is there a documented notification process specifying channels and responsible persons?**

KEY POINT **Paragraph 6 = tell the users. Article 5e = suspend the Wallet. Two separate duties.**

5a · Abs. 7

MAY

☐ L3

TOPIC Additional functionalities under national law

ADDRESSEE Member State

CONTENT A Member State (MS) **MAY** provide for additional functionalities, including interoperability with existing national electronic identification means. Those additional functionalities **SHALL** comply with Article 5a.

PURPOSE *Permits national value-added services without diluting the harmonised core.*

CROSS-REFERENCES **Article 5f Cross-border reliance and the obligation to accept**
Requires the public sector to accept the European Digital Identity Wallet wherever it requires electronic identification, and extends this to certain private parties in eleven named sectors as well as to very large online platforms. Microenterprises and small enterprises are exempt, and use follows only upon the voluntary request of the user. In addition, the Article provides for codes of conduct and an assessment of the use of European Digital Identity Wallets.

AUDIT CHECK **Have national additional functionalities been checked for conformity with Article 5a?**

KEY POINT **They may do more – not worse.**



5a · Abs. 8 a-b	SHALL	L1
TOPIC	Free-of-charge validation mechanisms	
ADDRESSEE	Member State	
CONTENT	The Member State shall provide validation mechanisms FREE OF CHARGE in order to (a) make the authenticity and validity of the European Digital Identity Wallet verifiable and (b) allow users to verify the authenticity and the identity of registered relying parties (RPs).	
PURPOSE	<i>Trust arises only where each side can verify the other independently – and without a cost barrier.</i>	
CROSS-REFERENCES	Article 5a(18) Notification obligations towards the Commission Names five items to be notified: the body responsible for the list of relying parties, together with the location of that list; the bodies responsible for the provision; the bodies responsible for associating the person identification data; the mechanism for validating those data and the identity of the relying parties; and the mechanisms for validating the authenticity and validity of the European Digital Identity Wallet. The Commission makes this information available to the public through a secure channel, in electronically signed form suitable for automated processing. Article 5b(5) Publication of the registration Requires the Member State to make the registration information publicly available online in electronically signed or sealed form suitable for automated processing. Only this enables the European Digital Identity Wallet to verify by automated means whether a requesting party is registered. Article 5c(1) Subject matter of certification Defines exhaustively what is certified: the conformity of the European Digital Identity Wallet AND of the electronic identification scheme with Article 5a(4), (5) and (8), the requirement for logical separation laid down in paragraph 14 and, where applicable, the standards referred to in paragraph 24. Everything else in Article 5a is subject to supervision under Article 46a, not to certification. The number sequence 4-5-8-14 is the practical mnemonic anchor.	
AUDIT CHECK	Are both directions of validation implemented and actually free of charge?	
KEY POINT	Two directions, free of charge: genuine EUDI Wallet? Genuine relying party?	

5a · Abs. 9 a-c	SHALL	L2
TOPIC	Grounds for revocation	
ADDRESSEE	<i>Member State</i>	
CONTENT	The Member State shall ensure that the validity of the European Digital Identity Wallet can be revoked: (a) upon the explicit request of the user, (b) where the security of the European Digital Identity Wallet has been compromised, (c) upon the death of the user or the cessation of activity of the legal person.	
PURPOSE	<i>An identity without a possibility of revocation is a security risk – in particular in the event of death or theft.</i>	
CROSS-REFERENCES	Article 5e Security breach of European Digital Identity Wallets Governs the emergency case: suspension without undue delay, immediate withdrawal where the severity so justifies, and information of users, single points of contact, relying parties and the Commission. If the breach is not remedied within three months, the European Digital Identity Wallets shall be withdrawn and their validity revoked. Once the breach has been remedied, provision shall be re-established; the Commission shall update the list referred to in Article 5d without undue delay.	
AUDIT CHECK	Are all three grounds for revocation reflected in processes, including the case of death?	
KEY POINT	User request, compromise, death – three triggers.	

5a · Abs. 10

SHALL

 L2

TOPIC **User support and incident reporting**

ADDRESSEE *Provider of the European Digital Identity Wallet*

CONTENT Providers shall ensure that users can **EASILY** request technical support and report technical problems or any other incidents having a negative impact.

PURPOSE *Incident detection begins with the user – without a low-threshold reporting channel a compromise goes undetected.*

CROSS-REFERENCES **Article 5e(1) Immediate suspension in the event of compromise**
Requires the Member State to suspend the provision and the use without undue delay where the European Digital Identity Wallet, the validation mechanisms or the underlying electronic identification scheme are breached or compromised in a manner that affects their reliability – with immediate withdrawal where the severity so justifies. Four groups of addressees are to be informed: the users affected, the single points of contact under Article 46c, the relying parties and the Commission.

AUDIT CHECK **Is there a documented, easily locatable support channel with response times?**

KEY POINT **The user is the first sensor.**

5a · Abs. 11

SHALL

L1

TOPIC **Provision at assurance level high**

ADDRESSEE *Member State*

CONTENT European Digital Identity Wallets shall be provided under an electronic identification scheme with assurance level **HIGH**.

PURPOSE *Anchors the European Digital Identity Wallet in the existing electronic identification framework – in law it is an electronic identification means, not a special object.*

CROSS-REFERENCES **Article 5a(22)**

Exemptions from the electronic identification Articles Disapplies Articles 7, 9, 10, 12 and 12a for the European Digital Identity Wallet and the underlying scheme. Instead, the European Digital Identity Wallet follows its own, stricter regime under Articles 5a to 5f. Important for the delimitation: Article 11 (liability) does apply, via Article 5a(19), and Article 12b (platform access) is precisely NOT exempted here.

“shall not be subject to the requirements laid down in Articles 7, 9, 10, 12 and 12a”

✓ Article 5a(22)

Article 5a(5) eIDAS Mandatory technical characteristics

The internal view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, European Digital Identity Wallet-to-European Digital Identity Wallet, relying party authentication, verification of authenticity, erasure requests, reporting to the authority, creation of qualified electronic signatures) – in effect the table of contents of the ARF. Point (b) prohibits any information being provided to the issuer of the electronic attestation of attributes, point (d) mandates assurance level high, and point (g) the free-of-charge qualified electronic signature for natural persons.

Article 9 eIDAS

Notification Governs the content of, and the procedure for, the notification of an electronic identification scheme. The Member State submits the description of the scheme, the assurance levels, the supervision and liability arrangements separately for the issuer and for the party operating the authentication procedure, the competent authorities, the registry responsible for the person identification data, the evidence of interoperability, the description of the authentication and the suspension and revocation arrangements. The Commission publishes the list in the Official Journal and includes amendments within one month.

AUDIT CHECK **Does the underlying electronic identification scheme actually meet assurance level high – and is the exemption from Articles 7, 9, 10, 12 and 12a under Article 5a(22) documented?**

KEY POINT **EUDI Wallet = electronic identification means at assurance level high.**

5a · Abs. 12

SHALL

 L2

TOPIC **Security by design**

ADDRESSEE *Provider of the European Digital Identity Wallet*

CONTENT European Digital Identity Wallets shall be equipped with 'security by design'.

PURPOSE *Security is to be an architectural feature, not a protective layer bolted on afterwards.*

CROSS-REFERENCES **Article 25 GDPR**
Data protection by design and by default
Paragraph 1 requires that appropriate measures such as pseudonymisation be taken already when determining the means of processing, in order to implement the principles of Article 5 GDPR effectively. Paragraph 2 requires default settings ensuring that, as a rule, only the personal data necessary for each specific purpose are processed – as regards the amount of data, the extent of the processing, the period of storage and accessibility. Relation to eIDAS: Article 12(3), point (c), eIDAS expressly incorporates privacy and security by design into the interoperability framework; Article 5a(12) eIDAS requires security by design for the European Digital Identity Wallet. Summary of content, not verified against the original text
● summary, not verified against the original

Article 5c Certification of the European Digital Identity Wallet
Provides that the European Digital Identity Wallet and the underlying electronic identification scheme are certified by designated conformity assessment bodies, and splits the assessment: cybersecurity requirements through the schemes under the Cybersecurity Act, everything else through national certification schemes, the drafts of which are to be submitted to the Cooperation Group. In addition it governs the five-year limit with a vulnerability assessment every two years, the optional GDPR certification, the implementing act and a delegated act on the criteria for the conformity assessment bodies.

AUDIT CHECK **Is there a documented security concept from the design phase, and not only from testing?**

KEY POINT **Security by design is a legal obligation here, not a best practice.**

5a · Abs. 13

SHALL

 L2

TOPIC **Free of charge for natural persons**

ADDRESSEE *Member State / provider of the European Digital Identity Wallet*

CONTENT The issuance, use and revocation of the European Digital Identity Wallet shall be **FREE OF CHARGE** to **ALL** natural persons.

PURPOSE *An identity subject to a charge would make access to public services socially selective.*

CROSS-REFERENCES **Article 5a(5) Mandatory technical characteristics**

The internal view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, European Digital Identity Wallet-to-European Digital Identity Wallet, relying party authentication, verification of authenticity, erasure requests, reporting to the authority, creation of qualified electronic signatures) – in effect the table of contents of the ARF. Point (b) prohibits any information being provided to the issuer of the electronic attestation of attributes, point (d) mandates assurance level high, and point (g) the free-of-charge qualified electronic signature for natural persons.

Article 5a(15) Voluntary use and prohibition of discrimination

The core political condition of the European Digital Identity Wallet: no one has to use it, and those who do not use it must not be disadvantaged in their access to services, on the labour market or in their freedom to conduct business. It forms the necessary counterweight to the obligations to accept under Article 5f – the service SHALL accept, the user is NOT required to use.

“The use of European Digital Identity Wallets shall be voluntary”

✓ Article 5a(15) eIDAS

AUDIT CHECK **Are issuance, use AND revocation free of charge – or only issuance?**

KEY POINT **Three operations are free: issuing, using, revoking.**

5a · Abs. 14

SHALL NOT

L1

TOPIC

User control, prohibition of tracking, logical separation

ADDRESSEE

Provider of the European Digital Identity Wallet

CONTENT

Users shall have full control. The provider shall collect **No** information about the use that is not necessary, and shall **NOT** combine person identification data (**PID**) or other European Digital Identity Wallet data with personal data from other services of its own or of third parties, unless the user has expressly requested otherwise. European Digital Identity Wallet data shall be kept **LOGICALLY SEPARATE** from any other data stored. Where the European Digital Identity Wallet is provided by private parties (paragraph 2, points (b) and (c)), Article 45h(3) applies mutatis mutandis.

PURPOSE

Prevents the State's identity infrastructure from becoming a data source for an advertising or platform business.

CROSS-REFERENCES

Article 45h(1) eIDAS

Prohibition on combining data from electronic attestations of attributes. Prohibits providers of qualified AND non-qualified electronic attestation of attributes services from combining personal data from those services with data from other services offered by themselves OR BY THEIR BUSINESS PARTNERS. The reach beyond the provider's own group of companies is frequently overlooked. Paragraphs 2 and 3 add logical and functional separation.

Article 5a(16)

Unlinkability in the technical framework. Point (a) prohibits providers of electronic attestations of attributes or any other party from obtaining, after issuance, data that would allow transactions or user behaviour to be tracked, linked or correlated. Point (b) requires techniques that ensure unlinkability where identification of the user is not necessary. Whereas paragraph 5, point (b), prohibits reading along, paragraph 16 prohibits bringing data together – technically this leads to techniques such as selective disclosure and zero-knowledge proofs.

Article 5c(1) Subject matter of certification

Defines exhaustively what is certified: the conformity of the European Digital Identity Wallet AND of the electronic identification scheme with Article 5a(4), (5) and (8), the requirement for logical separation laid down in paragraph 14 and, where applicable, the standards referred to in paragraph 24. Everything else in Article 5a is subject to supervision under Article 46a, not to certification. The number sequence 4-5-8-14 is the practical mnemonic anchor.

Article 12b eIDAS Access to hardware and software features

Requires gatekeepers within the meaning of the Digital Markets Act to provide providers of European Digital Identity Wallets and issuers of notified electronic identification means with effective interoperability with, and access to, the same operating system, hardware and software features – such as the secure element and the NFC interface. Pursuant to Article 6(7) DMA, free of charge and irrespective of whether the feature is part of the operating system. Without this provision, two platform operators could technically prevent compliance with the State's obligation to provide. It is enforced through the DMA, not through eIDAS supervision. Summary of content, not verified against the original text

● summary, not verified against the original

AUDIT CHECK

Is the logical separation demonstrated technically – and was it part of the certification under Article 5c(1)?

KEY POINT

Paragraph 14 is the only paragraph outside 4/5/8 that is expressly certified.

5a · Abs. 15

SHALL NOT

L1

TOPIC **Voluntary use and prohibition of discrimination**

ADDRESSEE *Member State / all service providers*

CONTENT Use shall be **VOLUNTARY**. Persons who do not use the European Digital Identity Wallet **SHALL NOT** in any way be restricted or placed at a disadvantage in accessing public and private services, in access to the labour market or in the freedom to conduct a business. Other identification means shall remain possible.

PURPOSE *A core political condition of the Regulation – without it the European Digital Identity Wallet would amount to a de facto obligation to identify oneself.*

CROSS-REFERENCES **Article 5f Cross-border use and obligation of acceptance**
Requires the public sector to accept the European Digital Identity Wallet wherever it requires electronic identification, and extends this to certain private parties in eleven named sectors as well as to very large online platforms. Microenterprises and small enterprises are exempt; use takes place only at the voluntary request of the user. In addition, the Article provides for codes of conduct and an evaluation of the use of the European Digital Identity Wallet.

AUDIT CHECK **Does an alternative identification route remain open for every service?**

KEY POINT

The relying party SHALL accept (5f) – the user is NOT REQUIRED to use (Article 5a(15)).

5a · Abs. 16 a-b

SHALL NOT

L1

TOPIC Unlinkability in the technical framework

ADDRESSEE *European Digital Identity Wallet (technical) / Commission (via implementing act)*

CONTENT The technical framework (a) **SHALL NOT** allow providers of electronic attestations of attributes (EAA) or any other party, after issuance, to obtain any data that would allow transactions or user behaviour to be tracked, linked or correlated, unless the user explicitly authorises it; (b) shall enable privacy preserving techniques which ensure **UNLINKABILITY** where identification is not required.

PURPOSE *Protects against the build-up of an EU-wide behavioural profile via the identity infrastructure.*

CROSS-REFERENCES **ARF Architecture and Reference Framework of the European Digital Identity Wallet**
Not a legal act, but the technical reference architecture developed within the implementing acts under Article 5a(23) eIDAS. It describes the roles, data models, protocols and trust model of the European Digital Identity Wallet, drawing on formats such as ISO/IEC 18013-5 (mobile driving licences) and W3C Verifiable Credentials. Relationship to eIDAS: it fills the eleven interface cases of Article 5a(5), point (a)(i) to (xi) eIDAS with concrete specifications. Only what the implementing act takes over becomes legally binding. Summary of content, not verified against the original text
● summary, not verified against the original

Article 45h eIDAS

Additional rules for services for electronic attestation of attributes Prohibits providers of qualified and non-qualified attestation services from combining personal data from those services with data from other services offered by them or by their business partners. Paragraph 2 requires the data to be kept logically separate from all other data holdings; paragraph 3 requires the qualified service to be functionally separate from the provider's other services.

Article 5a(5) Mandatory technical characteristics

The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, European Digital Identity Wallet-to-European Digital Identity Wallet, relying party authentication, verification of authenticity, deletion requests, reporting to authorities, creation of qualified electronic signatures) – in effect the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes, point (d) requires assurance level high, point (g) the qualified electronic signature free of charge for natural persons.

AUDIT CHECK **Which cryptographic technique actually implements unlinkability – or is it merely asserted at organisational level?**

KEY POINT **Paragraph 5(b) prohibits monitoring, paragraph 16 prohibits aggregating.**

5a · Abs. 17

SHALL

L1

TOPIC **GDPR compliance and accountability**

ADDRESSEE *Member State / responsible bodies*

CONTENT Any processing shall be carried out in accordance with appropriate and effective data protection measures. Compliance of the processing activities with the GDPR **SHALL BE DEMONSTRATED**. Member States (MS) may adopt national provisions further specifying those requirements.

PURPOSE *The burden of proof lies with the operator – accountability analogous to Article 5(2) GDPR.*

CROSS-REFERENCES **Article 5 GDPR**

Principles relating to processing of personal data Paragraph 1 sets out six principles: lawfulness, fairness and transparency; purpose limitation; data minimisation; accuracy; storage limitation; integrity and confidentiality. Paragraph 2 establishes accountability – the controller SHALL be able to DEMONSTRATE compliance with those principles. Relationship to eIDAS: Article 5b(2), point (c), and Article 5b(3) eIDAS make the purpose limitation of paragraph 1(b) technically enforceable: what has not been stated as an intended use at registration may not be requested. The accountability of paragraph 2 recurs in Article 5a(17) eIDAS as a self-standing obligation to demonstrate compliance. Summary of content, not verified against the original text

● summary, not verified against the original

Article 24 eIDAS Requirements for qualified trust service providers

The central catalogue of obligations. Paragraphs 1, 1a and 1b govern the verification of identity (four methods) and of attributes (five methods). Paragraph 2 contains points (a) to (k) – notification obligations, staff, financial resources, information to users, trustworthy systems and cryptography, verifiable storage, risk management, 24-hour notification, protection against forgery, record-keeping, termination plan and certificate database. Paragraphs 3 and 4 govern revocation and certificate status information.

Article 35 eIDAS

Legal effects of electronic seals Paragraph 1 contains the prohibition of discrimination, paragraph 2 the presumption of the integrity of the data and of the correctness of the origin claimed, for qualified electronic seals. Unlike the qualified electronic signature, the electronic seal is NOT given the equivalent effect of a handwritten signature – it attests the origin from an organisation, not a person's intention to be legally bound. The former paragraph 3 has been deleted.

AUDIT CHECK **Is there a data protection impact assessment and a record of processing activities for the European Digital Identity Wallet?**

KEY POINT **Not 'being compliant', but 'demonstrating compliance'.**

5a · Abs. 18 a-e

SHALL

 L2

TOPIC **Notification obligations towards the Commission**

ADDRESSEE *Member State / Commission*

CONTENT The Member State (MS) shall notify, **WITHOUT UNDUE DELAY**, information about (a) the body responsible for the list of relying parties and the location of that list, (b) the bodies responsible for the provision of the European Digital Identity Wallet, (c) the bodies responsible for associating the person identification data (**PID**), (d) the mechanism for validating the person identification data and the identity of the relying parties, (e) the mechanisms for validating the authenticity and validity of the European Digital Identity Wallet. The Commission shall make this available to the public through a **SECURE** channel, in electronically signed or sealed form suitable for automated processing.

PURPOSE *A relying party abroad must be able to establish by automated means which European Digital Identity Wallet and which list of relying parties are genuine.*

DEADLINE **without undue delay**

CROSS-REFERENCES **Article 5b(5) Publication of the registration**
Requires the Member State to make the registration information publicly available online in electronically signed or sealed form suitable for automated processing. Only this enables the European Digital Identity Wallet to verify by automated means whether a requesting party is registered.

Article 5a(23)
Implementing act on the core European Digital Identity Wallet requirements In practice the most important empowering provision of the Regulation. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – this is the legal basis of the Architecture and Reference Framework. At the same time it is one of the two triggers of the 24-month time limit in paragraph 1. Numerous further provisions (Article 5b(11), 5d(7), 5e(5), 45d(5), 45e(2), 45f(6) and (7)) expressly require alignment with that act. Significance here: without that act, paragraphs 4, 5, 8 and 18 cannot be audited; it is also the time-limit anchor of paragraph 1.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23) eIDAS

Article 5d Publication of the list of certified European Digital Identity Wallets
Requires Member States to inform the Commission and the Cooperation Group without undue delay of certified as well as of withdrawn European Digital Identity Wallets, and states the minimum content of that notification. The Commission maintains a machine-readable list published in the Official Journal and incorporates changes within one month. The list of European Digital Identity Wallets is to be distinguished from the trusted list of trust service providers under Article 22.

AUDIT CHECK **Have all five items subject to notification actually been transmitted and published?**

KEY POINT **Five notifications: list, providers, association – plus two validation mechanisms.**

5a · Abs. 19

REFERENCING PROVISION



TOPIC

Liability

ADDRESSEE

Member State / European Digital Identity Wallet provider

CONTENT

Article 11 (liability in the field of electronic identification) applies **MUTATIS MUTANDIS** to the European Digital Identity Wallet – without prejudice to paragraph 22.

PURPOSE

Avoids a separate liability regime; the European Digital Identity Wallet follows the electronic identification liability rules.

CROSS-REFERENCES

Article 5a(22)

Exemptions from the electronic identification Articles Disapplies Articles 7, 9, 10, 12 and 12a for the European Digital Identity Wallet and the underlying scheme. The European Digital Identity Wallet instead follows its own, stricter regime under Articles 5a to 5f. Important for the delimitation: Article 11 (liability) does apply, by virtue of Article 5a(19), and Article 12b (access to platforms) is precisely NOT exempted here.

“shall not be subject to the requirements laid down in Articles 7, 9, 10, 12 and 12a”

✓ Article 5a(22)

Article 11 eIDAS

Liability in the field of electronic identification Allocates liability over three roles and three points of Article 7: the notifying Member State is liable for point (d) (unambiguous attribution of the person identification data) and point (f) (availability of authentication), the issuer for point (e) (correct attribution of the means), and the operator of the authentication procedure for its incorrect operation. All three cases concern cross-border transactions only. By virtue of Article 5a(19) it applies mutatis mutandis to European Digital Identity Wallets as well. Significance here: the European Digital Identity Wallet follows the electronic identification liability of Chapter II, not the trust service liability of Article 13.

AUDIT CHECK

Is the liability regime for the European Digital Identity Wallet documented and notified to the Commission under Article 5d(2)(c)?

KEY POINT

EUDI Wallet liability = Article 11 (electronic identification), not Article 13.

5a · Abs. 20

REFERENCING PROVISION

L1

TOPIC

Partial application of the qualified trust service provider obligationsADDRESSEE *European Digital Identity Wallet provider*

CONTENT Article 24(2), points (b) and (d) to (h), apply **MUTATIS MUTANDIS** to providers of European Digital Identity Wallets: qualified staff, information to users, trustworthy systems, verifiable storage, risk management (fa), 24-hour notification (fb), protection against forgery, record-keeping.

PURPOSE *Transfers the established catalogue of qualified trust service provider (QTSP) obligations in part to European Digital Identity Wallet providers, without turning them into qualified trust service providers.*

CROSS-REFERENCES

Article 24(2) eIDAS Catalogue of obligations of the qualified trust service provider

The central catalogue, in practice the structure of every audit: (a) notification obligations (1 month for changes, 3 months for cessation), (b) qualified and trained staff in accordance with recognised standards, (c) sufficient financial resources or liability insurance, (d) pre-contractual information, (e) trustworthy systems, including suitable cryptographic techniques, (f) verifiable data storage, (fa) risk management, (fb) 24-hour notification, (g) protection against forgery and loss of data, (h) record-keeping beyond the cessation of activities, (i) termination plan, (k) certificate database. Point (j) has been deleted – the gap is intentional. Significance here: only points (b) and (d) to (h) are taken over – this expressly does not make the European Digital Identity Wallet provider a qualified trust service provider.

Article 46a eIDAS Supervision of the European Digital Identity Wallet framework

Requires Member States to designate supervisory bodies for European Digital Identity Wallet providers and to notify them to the Commission. Those bodies monitor compliance with the requirements, may require evidence and may order measures. Before eIDAS 2.0 there was no comparable supervisory structure for the electronic identification pillar.

AUDIT CHECK

Are the incorporated points (b) and (d) to (h) actually audited at the European Digital Identity Wallet provider?

KEY POINT

(b) and (d) to (h) – NOT (a), (c), (i), (k). The extract is precisely delimited.

5a · Abs. 21

SHALL

 L2

TOPIC **Accessibility**

ADDRESSEE *European Digital Identity Wallet provider / Member State*

CONTENT European Digital Identity Wallets shall be made accessible for use by persons with disabilities on an equal basis with other users, in accordance with Directive (EU) 2019/882.

PURPOSE *An infrastructure that is mandatory must not technically exclude any group of persons.*

CROSS-REFERENCES **Article 15 eIDAS**
Accessibility Requires electronic identification means, trust services AND the end-user products used in the provision of those services to be made accessible in easy-to-understand language – in accordance with the UN Convention on the Rights of Persons with Disabilities and the accessibility requirements of Directive (EU) 2019/882. Older persons and persons with limited access to digital technologies are expressly covered as well. eIDAS 2.0 has deleted the former qualification 'where feasible'.

AUDIT CHECK **Is there an accessibility statement or evidence of conformity in accordance with EN 301 549?**

KEY POINT **Accessible on an equal basis for persons with disabilities – Directive (EU) 2019/882.**

5a · Abs. 22

DEFINITION

L1

TOPIC

Exemptions from the electronic identification Articles

ADDRESSEE

Member State

CONTENT

For the purposes of the provision of the European Digital Identity Wallet and of the underlying electronic identification scheme, Articles 7, 9, 10, 12 and 12a do **NOT** apply.

PURPOSE

With Articles 5a to 5f the European Digital Identity Wallet has its own, stricter regime; applying both in parallel would be contradictory.

CROSS-REFERENCES

Article 7 eIDAS

Conditions for notification Eight cumulative conditions, points (a) to (h). Particularly relevant in practice: point (f) requires online authentication that is available across borders and must be free of charge for public services; point (g) requires the description of the scheme to be submitted to the other Member States at least six months before notification. Points (d), (e) and (f) are at the same time the connecting factors for liability under Article 11. Not applicable to European Digital Identity Wallets (Article 5a(22)).

Article 9 eIDAS

Notification Governs the content and the procedure for notifying an electronic identification scheme. The Member State transmits the description of the scheme, the assurance levels, the supervisory and liability arrangements separately for the issuer and for the operator of the authentication procedure, the competent authorities, the registry for the person identification data, the evidence of interoperability, the description of the authentication and the arrangements for suspension and revocation. The Commission publishes the list in the Official Journal and incorporates changes within one month.

Article 10 eIDAS Security breach in electronic identification schemes

Requires the notifying Member State, in the event of a breach affecting the reliability, to suspend or revoke cross-border authentication without delay and to inform the other Member States and the Commission. Once the breach is remedied, authentication is to be restored; if it is not remedied within three months, the withdrawal of the scheme is to be notified. The parallel provision for European Digital Identity Wallets is Article 5e.

Article 12 eIDAS

Interoperability Requires the notified schemes to be interoperable and describes the framework to be created for that purpose: technology-neutral, based on European and international standards and – new since eIDAS 2.0 – promoting privacy and security by design. The framework covers the reference to the assurance levels, the mapping of the national levels, minimum technical requirements, the minimum data set of person identification data, procedural rules, dispute resolution and common security standards. In addition, the Article governs peer review.

Article 12a eIDAS Certification of electronic identification schemes

Allows the cybersecurity compliance of electronic identification schemes to be notified to be certified by designated conformity assessment bodies under a scheme adopted pursuant to the Cybersecurity Act. The certification is valid for a maximum of five years, subject to a vulnerability assessment every two years, and is withdrawn where a vulnerability is not remedied within three months. The practical incentive is in paragraph 5: certified schemes are exempt from peer review.

Article 11 eIDAS

Liability in the field of electronic identification Allocates liability over three roles and three points of Article 7: the notifying Member State is liable for point (d) (unambiguous attribution of the person identification data) and point (f) (availability of authentication), the issuer for point (e) (correct attribution of the means), and the operator of the authentication procedure for its incorrect operation. All three cases concern cross-border transactions only. By virtue of Article 5a(19) it applies mutatis mutandis to European Digital Identity Wallets as well. Significance here: the European Digital Identity Wallet follows the electronic identification liability of Chapter II, not the trust service liability of Article 13.

AUDIT CHECK

Is the notification procedure under Article 9 being wrongly applied to the European Digital Identity Wallet?

KEY POINT

Not applicable: 7, 9, 10, 12, 12a. Applicable: 11 (via paragraph 19).

5a · Abs. 23 Auftrag Kommission

■ L1

TOPIC Implementing-act empowerment – basis of the ARF**ADDRESSEE** Commission

CONTENT The Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in **PARAGRAPHS** 4, 5, 8 and 18. Examination procedure under Article 48(2).

PURPOSE *The substantive European Digital Identity Wallet requirements cannot be audited without technical specification – this paragraph is the legal basis of the Architecture and Reference Framework.*

DEADLINE by 21 November 2024

CROSS-REFERENCES **Article 5a(1) Obligation to provide and time-limit anchor**
Establishes the central implementation obligation of Chapter II: every Member State SHALL provide at least one European Digital Identity Wallet. The time-limit mechanism is decisive – the 24 months do not run from the date of the Regulation, but from the entry into force of TWO implementing acts: Article 5a(23) (core functions) and Article 5c(6) (certification). As long as either of the two is missing, the period does not start to run. The same anchor governs Article 5f(2) (36 months) and Article 45e(1) as well.

“each Member State shall provide at least one European Digital Identity Wallet within 24 months of the date of entry into force of the implementing acts referred to in paragraph 23 of this Article and in Article 5c(6)”

✓ Article 5a(1)

Article 5c(6) eIDAS Implementing act on European Digital Identity Wallet certification

Establishes reference standards, specifications and procedures for the certification under paragraphs 1, 2 and 3. Together with Article 5a(23), the second trigger of the 24-month time limit. Without a uniform certification scheme, a European Digital Identity Wallet certificate from one Member State would not be dependable in another – and the list under Article 5d would have no common yardstick. Significance here: the second trigger of the same time limit – if either of the two acts is missing, the 24-month clock in paragraph 1 does not start to run at all.

Article 5b(11)

Implementing act Empowers the Commission to lay down technical and operational specifications and procedures for paragraphs 2, 5 and 6 to 9, and to do so within the European Digital Identity Wallet act under Article 5a(23). Without a uniform format, the registration could not be evaluated across borders.

Article 5d(7)

Implementing act on notification formats Empowers the Commission to lay down formats and procedures for the notifications under paragraphs 1, 4 and 5 – within the European Digital Identity Wallet act under Article 5a(23). Notifications must be suitable for automated processing, otherwise the procedure does not scale.

Article 5e(5)

Implementing act on security incidents Empowers the Commission to lay down reference standards, specifications and procedures for the measures under paragraphs 1, 2 and 3 – that is, for suspension, withdrawal and reinstatement.

Article 45d(5) eIDAS

Implementing act on attestations of attributes Empowers the Commission to lay down reference standards, specifications and procedures for qualified electronic attestations of attributes – expressly in line with the European Digital Identity Wallet act under Article 5a(23). Without that alignment, the attestation could not reach the European Digital Identity Wallet.

Article 45f(6) eIDAS

Implementing act on PuB-EAA Empowers the Commission to lay down reference standards for electronic attestations of attributes issued by public sector bodies – in line with the European Digital Identity Wallet act under Article 5a(23).

AUDIT CHECK **Which implementing act is in place – and does it cover paragraphs 4, 5, 8 and 18 in full?**

KEY POINT **Without the paragraph 23 act there is no ARF – and no 24-month clock.**

5a · Abs. 23 Auftrag Kommission (cross-references, continued)**CROSS-REFERENCES** **Article 45e(2) eIDAS**

Implementing act on the catalogue of attributes Empowers the Commission to lay down reference standards, specifications and procedures for the catalogue of attributes, the attestation schemes and the verification procedures – taking international standards into account and in line with the European Digital Identity Wallet act.

5a · Abs. 24 Auftrag Kommission

■ L1

TOPIC **Implementing act on user onboarding**

ADDRESSEE *Commission*

CONTENT Implementing act on reference standards and procedures for the onboarding of users to the European Digital Identity Wallet – either by electronic identification means conforming to assurance level **HIGH** or by electronic identification means conforming to assurance level **SUBSTANTIAL** in conjunction with additional remote onboarding procedures that together meet the requirements of assurance level **HIGH**.

PURPOSE *Without this bridge, citizens without an identity document at assurance level high could not get into the European Digital Identity Wallet at all – the rollout would be blocked.*

DEADLINE **no explicit deadline in the wording**

CROSS-REFERENCES **Article 5a(5) Mandatory technical characteristics**
The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, European Digital Identity Wallet-to-European Digital Identity Wallet, relying party authentication, verification of authenticity, erasure request, reporting to the authority, creation of qualified electronic signatures) – in practice this is the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes, point (d) mandates assurance level high, and point (g) the free-of-charge qualified electronic signature for natural persons.

Article 5c(1) Subject matter of certification
Defines exhaustively what is certified: the conformity of the European Digital Identity Wallet AND of the electronic identification scheme with Article 5a(4), (5) and (8), with the requirement for logical separation laid down in Article 5a(14) and, where applicable, with the standards referred to in Article 5a(24). Everything else in Article 5a is subject to supervision under Article 46a, not to certification. The number sequence 4-5-8-14 is the practical mnemonic anchor.

Article 8 eIDAS
Assurance levels of electronic identification schemes Paragraph 1 requires the assurance level attributed to be specified, paragraph 2 defines the scale of low, substantial and high by reference to their effectiveness against the misuse of identity, and paragraph 3 empowers the Commission to lay down minimum requirements in six areas: identity proofing and verification, issuance of the means, the authentication mechanism, the issuing body, other bodies involved, and the technical specifications of the means.

AUDIT CHECK **Which onboarding path is used – assurance level high directly, or substantial plus additional procedures?**

KEY POINT **Substantial + additional procedures = high. The only lawful detour.**

5b · Abs. 1

SHALL

L1

TOPIC **Registration obligation of relying parties**

ADDRESSEE *Relying party (RP)*

CONTENT Whoever intends to rely upon European Digital Identity Wallets for the provision of public **OR** private services **SHALL REGISTER** in the Member State where it is established.

PURPOSE *Only registered relying parties can be authenticated by the European Digital Identity Wallet – registration is the filter against anonymous data harvesting.*

CROSS-REFERENCES **Article 5a(5) Mandatory technical characteristics**
The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, European Digital Identity Wallet-to-European Digital Identity Wallet, relying party authentication, verification of authenticity, erasure request, reporting to the authority, creation of qualified electronic signatures) – in practice this is the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes, point (d) mandates assurance level high, and point (g) the free-of-charge qualified electronic signature for natural persons.

Article 5a(8) Free-of-charge validation mechanisms
Requires the Member State to provide two free-of-charge verification routes running in opposite directions: point (a) allows verification of whether a European Digital Identity Wallet presented is authentic and valid; point (b) allows the user to verify whether the requesting relying party is registered and authentic. Without this two-way verifiability, Article 5b(8) (self-identification of the relying party) could not be verified. Forms part of the subject matter of certification under Article 5c(1).

Relevance here: the registration becomes effective only because the European Digital Identity Wallet can verify the registered relying party free of charge.

Article 5b(5) Publication of the registration
Obliges the Member State to make the registration information publicly available online in electronically signed or sealed form suitable for automated processing. Only this enables the European Digital Identity Wallet to verify by automated means whether a requesting entity is registered.

Article 5b(7) Common identification mechanism
Obliges the Member State to provide a common mechanism for allowing the identification and authentication of relying parties, as referred to in Article 5a(5), point (c). Twenty-seven different procedures would be unmanageable across borders.

AUDIT CHECK **Has registration taken place in the Member State of establishment – and is the entry up to date?**

KEY POINT **No access without registration. That is the entry ticket.**

5b · Abs. 2 a-c

SHALL

L1

TOPIC **Minimum content of the registration**

ADDRESSEE *Relying party (RP)*

CONTENT The registration process shall be cost-effective and proportionate to risk. The relying party shall provide **AT LEAST:** (a) the information necessary for authentication (i the Member State (MS) in which it is established, ii the name and, where applicable, the registration number as stated in an official record, together with the identification data of that official record), (b) contact details, (c) the **INTENDED USE**, including an indication of the data to be requested.

PURPOSE *Point (c) is the anchor of purpose limitation: what is not indicated here may not be requested later.*

CROSS-REFERENCES **Article 5b(3) Prohibition of over-asking**
Makes the registration information under paragraph 2, point (c) legally binding: the registered scope of data is at the same time the maximum permissible scope. This makes purpose limitation under data protection law enforceable in technical and supervisory terms for the first time, instead of merely being asserted.
“shall not request users to provide any data other than that indicated pursuant to paragraph 2, point (c)”
✓ Article 5b(3)

Article 5b(6) eIDAS Duty to update
Obliges registered entities to inform the Member State without delay of any change to the registration information – including a change of the intended use and thus of the permissible scope of requests.

Article 5b(11)
Implementing act Empowers the Commission to establish technical and operational specifications and procedures for paragraphs 2, 5 and 6 to 9, by means of the implementing acts on the implementation of the European Digital Identity Wallet referred to in Article 5a(23). Without a uniform format, the registration could not be evaluated across borders.

AUDIT CHECK **Does the registered data request actually cover the scope of requests made in production?**

KEY POINT **What is not in point (c) may not be requested under paragraph 3.**

5b · Abs. 3

SHALL NOT

L1

TOPIC Prohibition of over-asking

ADDRESSEE Relying party (RP)

CONTENT Relying parties **SHALL NOT** request users to provide **ANY DATA OTHER THAN** that indicated pursuant to paragraph 2, point (c).

PURPOSE *Makes purpose limitation enforceable in technical and supervisory terms instead of merely asserted.*
CROSS-REFERENCES Article 5 GDPR

Principles relating to the processing of personal data Paragraph 1 sets out six principles: lawfulness, fairness and transparency; purpose limitation; data minimisation; accuracy; storage limitation; integrity and confidentiality. Paragraph 2 establishes accountability – the controller must be able to DEMONSTRATE compliance with those principles. Link to eIDAS: Article 5b(2), point (c) and Article 5b(3) eIDAS make the purpose limitation of paragraph 1, point (b) technically enforceable: what is not indicated as an intended use at registration may not be requested. The accountability of paragraph 2 recurs in Article 5a(17) eIDAS as a separate obligation to demonstrate compliance. Summary of content, not verified against the original text

● summary, not verified against the original

Article 5b(2) Minimum content of the relying party registration

The relying party must provide authentication information, contact details and – point (c) – the intended use, including an indication of the data to be requested. Point (c) is the anchor of purpose limitation: it defines the permissible scope of requests to which paragraph 3 binds the relying party.

Article 5b(6) Duty to update

Obliges registered entities to inform the Member State without delay of any change to the registration information – including a change of the intended use and thus of the permissible scope of requests.

AUDIT CHECK Does the request made in production deviate from the registered scope? How is this monitored?

KEY POINT Registered scope = maximum scope. No adding data later.

5b · Abs. 4

DEFINITION

☐ L3

TOPICOther legal provisions left unaffected

ADDRESSEE-

CONTENTParagraphs 1 and 2 shall be without prejudice to Union or national law that is applicable to the provision of specific services.

PURPOSESectoral law (for example anti-money-laundering law, health law) continues to apply with priority.

CROSS-REFERENCESGDPR Regulation (EU) 2016/679 – General Data Protection Regulation

Continues to apply in full alongside eIDAS; Article 2(3) eIDAS states this expressly. For the European Digital Identity Wallet and for trust services, the decisive provisions are above all the principles relating to processing (Article 5), accountability (Article 5(2), Article 24), data protection by design (Article 25), security of processing (Article 32), notification obligations (Article 33), the impact assessment (Article 35) and liability and penalties (Articles 82 and 83). Link to eIDAS: Article 5a(17) eIDAS expressly requires compliance with the GDPR to be DEMONSTRATED for processing in the European Digital Identity Wallet; Article 20(3b) eIDAS makes a notified infringement of the GDPR a ground for withdrawing qualified status. Summary of content, not verified against the original text

● summary, not verified against the original

Article 2(3) eIDAS

Relationship with data protection law
Clarifies that this Regulation is without prejudice to the General Data Protection Regulation. Where eIDAS regulates processing operations, its requirements are added to the GDPR and do not replace it.

AUDIT CHECKWhich sector-specific identification obligations apply in addition?

KEY POINTeIDAS does not displace sectoral law.



5b · Abs. 5	SHALL	L1
TOPIC	Publication of the relying party registration	
ADDRESSEE	Member State	
CONTENT	The Member State (MS) shall make the information referred to in paragraph 2 PUBLICLY available online in electronically signed or sealed form suitable for automated processing.	
PURPOSE	<i>The European Digital Identity Wallet must be able to verify by automated means whether the requesting relying party is registered – this requires a signed, retrievable list.</i>	

CROSS-REFERENCES **Article 5a(8) Free-of-charge validation mechanisms**

Requires the Member State to provide two free-of-charge verification routes running in opposite directions: point (a) allows verification of whether a European Digital Identity Wallet presented is authentic and valid; point (b) allows the user to verify whether the requesting relying party is registered and authentic. Without this two-way verifiability, Article 5b(8) (self-identification of the relying party) could not be verified. Forms part of the subject matter of certification under Article 5c(1).

Relevance here: the registration becomes effective only because the European Digital Identity Wallet can verify the registered relying party free of charge.

Article 5a(18)

Notification obligations towards the Commission Names five subjects of notification: the body responsible for the list of relying parties together with the location of that list, the bodies responsible for the provision, the bodies responsible for associating the person identification data, the mechanism for validating that data and the identity of the relying parties, and the mechanisms for validating the authenticity and validity of the European Digital Identity Wallet. The Commission makes this information public through a secure channel, in signed form suitable for automated processing.

Article 5b(7) Common identification mechanism

Obliges the Member State to provide a common mechanism for allowing the identification and authentication of relying parties, as referred to in Article 5a(5), point (c). Twenty-seven different procedures would be unmanageable across borders.

AUDIT CHECK	Is the relying party list signed, machine-readable and up to date?
KEY POINT	Public, signed, machine-readable – otherwise the EUDI Wallet can verify nothing.

5b · Abs. 6

SHALL

 L2

TOPIC **Duty to update**

ADDRESSEE *Relying party (RP)*

CONTENT Registered relying parties shall inform the Member State (MS) **WITHOUT DELAY** of any change to the information provided pursuant to paragraph 2.

PURPOSE *An out-of-date registration either permits impermissible requests or blocks permissible ones.*

DEADLINE **without delay**

CROSS-REFERENCES **Article 5b(2) Minimum content of the relying party registration**
The relying party must provide authentication information, contact details and – point (c) – the intended use, including an indication of the data to be requested. Point (c) is the anchor of purpose limitation: it defines the permissible scope of requests to which paragraph 3 binds the relying party.

Article 5b(3) Prohibition of over-asking
Makes the registration information under paragraph 2, point (c) legally binding: the registered scope of data is at the same time the maximum permissible scope. This makes purpose limitation under data protection law enforceable in technical and supervisory terms for the first time, instead of merely being asserted.

“shall not request users to provide any data other than that indicated pursuant to paragraph 2, point (c)”

✓ Article 5b(3) eIDAS

AUDIT CHECK **Is there a process that notifies the registration authority of changes to the scope of requests?**

KEY POINT **If the purpose changes, the registration changes.**

5b · Abs. 7

SHALL

 L2

TOPIC **Common identification mechanism**

ADDRESSEE *Member State*

CONTENT The Member State (MS) shall provide a **COMMON** mechanism for allowing the identification and authentication of relying parties, as referred to in Article 5a(5), point (c).

PURPOSE *27 different relying party authentication procedures would be unmanageable for a cross-border European Digital Identity Wallet.*

CROSS-REFERENCES **Article 5a(5) Mandatory technical characteristics**

The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, European Digital Identity Wallet-to-European Digital Identity Wallet, relying party authentication, verification of authenticity, erasure request, reporting to the authority, creation of qualified electronic signatures) – in practice this is the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes, point (d) mandates assurance level high, and point (g) the free-of-charge qualified electronic signature for natural persons.

Article 5a(8) Free-of-charge validation mechanisms

Requires the Member State to provide two free-of-charge verification routes running in opposite directions: point (a) allows verification of whether a European Digital Identity Wallet presented is authentic and valid; point (b) allows the user to verify whether the requesting relying party is registered and authentic. Without this two-way verifiability, Article 5b(8) (self-identification of the relying party) could not be verified. Forms part of the subject matter of certification under Article 5c(1).

Relevance here: the registration becomes effective only because the European Digital Identity Wallet can verify the registered relying party free of charge.

Article 5b(5) Publication of the registration

Obliges the Member State to make the registration information publicly available online in electronically signed or sealed form suitable for automated processing. Only this enables the European Digital Identity Wallet to verify by automated means whether a requesting entity is registered.

AUDIT CHECK **Does the Member State (MS) use the common mechanism – or a national bespoke solution?**

KEY POINT **One mechanism for all relying parties, interoperable EU-wide.**

5b · Abs. 8

SHALL

L1

TOPIC **Self-identification towards the user**

ADDRESSEE *Relying party (RP)*

CONTENT Relying parties intending to rely upon European Digital Identity Wallets **S**
HALL identify themselves to the **USER**.

PURPOSE *Before releasing data the user should know to whom the data is given – protection against phishing and impersonation.*

CROSS-REFERENCES **Article 5a(5) Mandatory technical characteristics**

The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, European Digital Identity Wallet-to-European Digital Identity Wallet, relying party authentication, verification of authenticity, erasure request, reporting to the authority, creation of qualified electronic signatures) – in practice this is the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes, point (d) mandates assurance level high, and point (g) the free-of-charge qualified electronic signature for natural persons.

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Requires the Member State to provide two free-of-charge verification routes running in opposite directions: point (a) allows verification of whether a European Digital Identity Wallet presented is authentic and valid; point (b) allows the user to verify whether the requesting relying party is registered and authentic. Without this two-way verifiability, Article 5b(8) (self-identification of the relying party) could not be verified. Forms part of the subject matter of certification under Article 5c(1).

Relevance here: the registration becomes effective only because the European Digital Identity Wallet can verify the registered relying party free of charge.

AUDIT CHECK **Is the relying party identity visibly displayed to the user before the data is released?**

KEY POINT **First the service identifies itself, then the user.**

5b · Abs. 9

SHALL

L1

TOPIC **Responsibility for validation + acceptance of pseudonyms**

ADDRESSEE *Relying party (RP)*

CONTENT Relying parties shall be **RESPONSIBLE** for carrying out the authentication and validation of the person identification data (**PID**) and electronic attestations of attributes (EAA) requested from the European Digital Identity Wallet. Relying parties **SHALL NOT** refuse the use of **PSEUDONYMS** where the identification of the user is not required by Union or national law.

PURPOSE *Places the verification duty squarely on the relying party and at the same time protects the right to use pseudonyms under Article 5 against being undermined in practice.*

CROSS-REFERENCES **Article 5a(4)**
The seven user functionalities Describes, from the user's perspective, what the European Digital Identity Wallet must be able to do: (a) securely request, store, delete and selectively present attributes, (b) generate pseudonyms and store them encrypted and locally, (c) interact with another person's European Digital Identity Wallet, (d) a dashboard with a complete transaction history, including erasure requests and a button for reporting to the data protection authority, (e) sign by means of qualified electronic signatures and seal by means of qualified electronic seals, (f) download data, (g) exercise data portability. Together with paragraphs 5, 8 and 14, this paragraph forms the subject matter of certification under Article 5c(1).

Article 5 eIDAS Use of pseudonyms
A single, unnumbered sentence: without prejudice to specific identification obligations and to the legal effect given to pseudonyms under national law, the use of pseudonyms chosen by the user shall not be prohibited in electronic transactions. The Article has NO paragraphs. It is given concrete form in Article 5a(4), point (b), Article 5b(9) and Article 32(1), point (e).
Relevance here: the second sentence of paragraph 9 makes the general right to use pseudonyms enforceable against the relying party.

Article 32 eIDAS Requirements for the validation of qualified electronic signatures
Sets out in eight points when a validation may confirm validity: a qualified certificate complying with Annex I at the time of signing, issuance by a qualified trust service provider and validity at that time, correspondence of the validation data, correct provision of the data representing the signatory, clear indication where a pseudonym is used, creation by a qualified electronic signature creation device, integrity of the data, and compliance with Article 26. Paragraph 2 additionally requires that the result be displayed in an understandable way.

AUDIT CHECK **Does the service accept pseudonyms wherever there is no legal obligation to identify the user by real name?**

KEY POINT **Only a party that can name a legal basis for doing so may refuse a pseudonym.**

5b · Abs. 10

SHALL NOT

L1

TOPIC

Intermediaries

ADDRESSEE

Intermediaries acting on behalf of relying parties

CONTENT

Intermediaries acting on behalf of relying parties **SHALL BE DEEMED TO BE** relying parties and shall store **No** data about the **CONTENT** of the transaction.

PURPOSE

Prevents an unregulated intermediate data layer from forming between the European Digital Identity Wallet and the service.

CROSS-REFERENCES

Article 5b(1) Obligation to register

Requires anyone intending to rely upon European Digital Identity Wallets for the provision of public or private services to register in the Member State in which it is established. Only registered entities can be authenticated by the European Digital Identity Wallet.

Article 5a(16)

Unlinkability in the technical framework Point (a) prohibits providers of electronic attestations of attributes or any other party from obtaining, after issuance of the attestation, data that would allow transactions or user behaviour to be tracked, linked or correlated. Point (b) requires techniques which ensure unlinkability where the attestation of attributes does not require the identification of the user. Whereas paragraph 5, point (b) prohibits the issuer from being informed of use, paragraph 16 prohibits the bringing together of data – technically this leads to techniques such as selective disclosure and zero-knowledge proofs.

AUDIT CHECK

Is an identity broker in use? Does it store transaction content?

KEY POINT

Deemed a relying party – and yet may store no transaction content.

5b · Abs. 11 Auftrag Kommission



TOPIC **Empowerment to adopt implementing acts**

ADDRESSEE *Commission*

CONTENT The Commission shall establish technical specifications and procedures for the requirements referred to in paragraphs 2, 5 and 6 to 9, within the framework of the European Digital Identity Wallet implementing act referred to in Article 5a(23).

PURPOSE *Without a uniform format, the registration of relying parties is neither machine-readable nor usable across borders.*

DEADLINE **by 21 November 2024**

CROSS-REFERENCES **Article 5a(23)**

Implementing act on the core European Digital Identity Wallet requirements In practice the most important empowering provision of the Regulation. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – this is the legal basis of the Architecture and Reference Framework. It is at the same time one of the two triggers of the 24-month deadline in paragraph 1. Numerous further provisions (5b(11), 5d(7), 5e(5), 45d(5), 45e(2), 45f(6) and (7)) expressly require alignment with that act.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23)

Article 48(2) eIDAS

Examination procedure Refers to Article 5 of the Comitology Regulation (EU) No 182/2011. A committee composed of representatives of the Member States delivers an opinion by qualified majority; where the opinion is negative, the Commission may not adopt the draft. All implementing acts under this Regulation follow this procedure.

AUDIT CHECK **Has the implementing act been adopted, and does it cover paragraphs 2, 5 and 6-9?**

KEY POINT **Not paragraphs 1, 3, 4, 10 – the implementing act covers only 2, 5 and 6-9.**

5c · Abs. 1

SHALL

L1

TOPIC **Subject matter of certification**

ADDRESSEE *Conformity assessment body / Member State*

CONTENT The conformity of the European Digital Identity Wallet **AND** of the electronic identification scheme under which it is provided with Article 5a **PARAGRAPHS** 4, 5 and 8, with the requirement of **LOGICAL SEPARATION** laid down in Article 5a(14) and, where applicable, with the standards referred to in Article 5a(24) shall be certified by conformity assessment bodies **DESIGNATED** by the Member States (MS).

PURPOSE *Defines exactly and exhaustively what is certified – everything else in Article 5a is a matter for supervision, not for certification.*

CROSS-REFERENCES **Article 5a(4)**

The seven user functionalities Describes, from the user's perspective, what the European Digital Identity Wallet must be able to do: (a) securely request, store, delete and selectively present attributes, (b) generate pseudonyms and store them encrypted and locally, (c) interact with another person's European Digital Identity Wallet, (d) a dashboard with a complete transaction history, including erasure requests and a button for reporting to the data protection authority, (e) sign by means of qualified electronic signatures and seal by means of qualified electronic seals, (f) download data, (g) exercise data portability. Together with paragraphs 5, 8 and 14, this paragraph forms the subject matter of certification under Article 5c(1).

Article 5a(5) Mandatory technical characteristics

The inside view of paragraph 4. Point (a) lists eleven interfaces (issuance, request, presentation, user interaction, onboarding, European Digital Identity Wallet-to-European Digital Identity Wallet, relying party authentication, verification of authenticity, erasure requests, reporting to the authority, creation of qualified electronic signatures) – in effect the table of contents of the ARF. Point (b) prohibits any feedback to the issuer of the electronic attestation of attributes, point (d) mandates assurance level high, and point (g) the free-of-charge qualified electronic signature for natural persons.

Article 5a(8) Free-of-charge validation mechanisms

Requires the Member State to provide two free-of-charge verification paths running in opposite directions: point (a) allows verification of whether a European Digital Identity Wallet presented is authentic and valid; point (b) allows the user to verify whether the requesting relying party is registered and genuine. Without this two-way verifiability, Article 5b(8) (self-identification of the relying party) could not be verified. Forms part of the subject matter of certification under Article 5c(1).

Article 5a(14)

User control and logical separation Prohibits the provider of the European Digital Identity Wallet from collecting information about use that is not necessary, and from combining European Digital Identity Wallet data with data from other services of its own or of third parties. It must also keep the data logically separate from all other holdings. Where the European Digital Identity Wallet is provided by private parties under paragraph 2, point (b) or (c), Article 45h(3) (functional separation) applies mutatis mutandis in addition. This is the only paragraph outside 4, 5 and 8 that is expressly certified.

“Personal data relating to the provision of the European Digital Identity Wallet shall be kept logically separate from any other data held by the provider of the European Digital Identity Wallet”

✓ Article 5a(14) eIDAS

Relevance here: the only paragraph outside 4, 5 and 8 that is expressly included in the scope of certification.

AUDIT CHECK **Does the certificate submitted cover exactly 5a(4), (5), (8), (14) and, where applicable, (24)?**

KEY POINT **Scope of certification: 4 – 5 – 8 – 14 (+24). Learn this sequence of numbers by heart.**

5c · Abs. 1 (cross-references, continued)**CROSS-REFERENCES Article 5a(24)**

Implementing act on user onboarding
Empowers the Commission to establish reference standards and procedures for the onboarding of users – either by electronic identification means conforming to assurance level high, or by means conforming to assurance level substantial in conjunction with additional remote onboarding procedures that together meet the requirements of assurance level high. Without this route, citizens without an assurance-level-high identity document could not get into the European Digital Identity Wallet.

Article 5d Publication of the list of certified European Digital Identity Wallets

Requires the Member States to notify the Commission and the Cooperation Group without delay of both certified and withdrawn wallets, and states the minimum content of that notification. The Commission maintains a machine-readable list published in the Official Journal and incorporates changes within one month. The list of wallets is to be distinguished from the trusted list of trust service providers under Article 22.

5c · Abs. 2

SHALL

L1

TOPIC

Cybersecurity element via CSA schemes

ADDRESSEE

Conformity assessment body

CONTENT

In so far as requirements are relevant for **CYBERSECURITY**, certification shall be carried out in accordance with the European cybersecurity certification schemes adopted pursuant to Regulation (EU) 2019/881 (Cybersecurity Act) and referred to in the implementing act under paragraph 6.

PURPOSE

Avoids parallel certification and connects to the existing ENISA framework.

CROSS-REFERENCES

EUCC European cybersecurity certification scheme based on the Common Criteria

The first scheme adopted under the Cybersecurity Act. It builds on the Common Criteria and the associated evaluation methodology and covers assurance levels substantial and high. ICT products are certified against protection profiles. Relationship to eIDAS: in practice the likely frame of reference for the cybersecurity elements of European Digital Identity Wallet certification under Article 5c(2) eIDAS and of electronic identification scheme certification under Article 12a(2) eIDAS. Summary, not verified against the original text

● summary, not verified against the original

Article 12a(2) eIDAS Link to the Cybersecurity Act

Requires that certification be carried out under a relevant cybersecurity certification scheme adopted pursuant to Regulation (EU) 2019/881, or parts thereof, in so far as that scheme covers the requirements.

AUDIT CHECK

Which CSA scheme was applied – and does it cover the cybersecurity requirements in full?

KEY POINT

Cyber -> CSA scheme. Non-cyber -> national scheme (paragraph 3).

5c · Abs. 3

SHALL

L1

TOPIC

National certification schemes for the remainder

ADDRESSEE

Member State

CONTENT

For requirements that are not relevant for cybersecurity, and for cybersecurity-relevant requirements that are not covered, or only partially covered, by **CSA** schemes, the Member States (MS) **SHALL ESTABLISH** national certification schemes following the requirements set out in the implementing act under paragraph 6. Draft schemes are to be transmitted to the Cooperation Group, which **MAY** issue opinions and recommendations.

PURPOSE

Closes the gap between cybersecurity and the remaining requirements (e.g. usability, data protection architecture).

CROSS-REFERENCES

Article 5c(6) Implementing act on European Digital Identity Wallet certification

Establishes reference standards, specifications and procedures for certification under paragraphs 1, 2 and 3. Together with Article 5a(23), the second trigger of the 24-month deadline. Without a uniform certification scheme, a European Digital Identity Wallet certificate from one Member State would not be dependable in another – and the list under Article 5d would have no common yardstick.

Article 46e eIDAS European Digital Identity Cooperation Group

Establishes the Cooperation Group, in which the Member States coordinate practical application. It facilitates peer review and the exchange of experience and issues opinions and recommendations – inter alia on the draft national European Digital Identity Wallet certification schemes under Article 5c(3) and on the notifications under Article 5d.

AUDIT CHECK

Does the national scheme exist – and has it been transmitted to the Cooperation Group?

KEY POINT

Two worlds of certification, one certificate.

5c · Abs. 4

SHALL

L1

TOPIC

Period of validity and vulnerability assessment

ADDRESSEE

Conformity assessment body / provider of the European Digital Identity Wallet

CONTENT

Certification shall be valid for **UP TO FIVE YEARS, PROVIDED THAT** a vulnerability assessment is carried out **EVERY TWO YEARS**. Where a vulnerability is identified and **NOT** remedied **IN A TIMELY MANNER**, the certification **SHALL BE CANCELLED**.

PURPOSE

Prevents the 'certificate as a snapshot' – without recurring assessment, any security statement becomes outdated.

DEADLINE

5 years max. / vulnerability assessment every 2 years

CROSS-REFERENCES

Article 12a(3) eIDAS Five years, two years, three months

A more precise variant of the 5/2 rule: certification of an electronic identification scheme is valid for up to five years where a vulnerability assessment is carried out every two years; where a vulnerability is not remedied within three months of being identified, the certification shall be cancelled. At the same point Article 5c(4) says only 'in a timely manner', and Article 30(3a) gives no time limit at all – a popular examination topic.

Relevance here: the same 5/2 system, but there with an express three-month time limit instead of the indeterminate 'in a timely manner'.

Article 30(3a) eIDAS

Five-year limit for QSCD certifications New in eIDAS 2.0: certification of a qualified electronic signature creation device shall not exceed five years, provided that vulnerability assessments are carried out every two years; where vulnerabilities are not remedied, the certification shall be cancelled. Previously QSCD certificates were in effect open-ended, which was untenable in the face of ageing cryptography.

AUDIT CHECK

When did the last vulnerability assessment take place? Have the findings been demonstrably closed?

KEY POINT

5 years – 2 years – cancel. The same 5/2 rule applies in 12a(3) and 30(3a).

5c · Abs. 5

MAY

☐ L3

TOPIC

Optional GDPR certification

ADDRESSEE

Provider of the European Digital Identity Wallet

CONTENT

Compliance with the requirements of Article 5a relating to the processing of personal data **MAY** be certified pursuant to the GDPR.

PURPOSE

A bridge to Article 42 GDPR – voluntary, but strong evidence in supervisory proceedings.

CROSS-REFERENCES

Article 42 GDPR

Certification Provides for the establishment of data protection certification mechanisms and of data protection seals and marks, for the purpose of demonstrating compliance with that Regulation. Certification is voluntary, limited to a maximum of three years and does not reduce the responsibility of the controller. Relationship to eIDAS: Article 5c(5) eIDAS expressly allows the data protection related requirements of Article 5a to be certified under the GDPR – a may-provision that facilitates the demonstration required by Article 5a(17). Summary, not verified against the original text

● summary, not verified against the original

Article 5a(17) Demonstration of GDPR compliance

Requires appropriate and effective data protection measures and expressly requires that compliance of the processing operations with the GDPR BE DEMONSTRATED. This restates, specifically for the European Digital Identity Wallet, the accountability obligation of Article 5(2) GDPR. National provisions further specifying its application remain permissible.

AUDIT CHECK

Is a GDPR certification used to provide the demonstration required by 5a(17)?

KEY POINT

A may-provision: helpful, not mandatory.



5c · Abs. 6 Auftrag Kommission

■ L1

TOPIC Empowerment to adopt implementing acts – certification**ADDRESSEE** Commission**CONTENT** Implementing act containing a list of reference standards and, where necessary, specifications and procedures for the certification referred to in paragraphs 1, 2 and 3.**PURPOSE** *Without a uniform certification scheme, a European Digital Identity Wallet certificate from Member State (MS) A would not be dependable in MS B. This act is at the same time the SECOND trigger of the 24-month deadline under Article 5a(1).***DEADLINE** by 21 November 2024**CROSS-REFERENCES Article 5a(1) Obligation to provide and the deadline anchor**

Establishes the central implementation obligation of Chapter II: every Member State must provide at least one European Digital Identity Wallet. The decisive element is the deadline mechanism – the 24 months do not run from the date of the Regulation but from the entry into force of TWO implementing acts: Article 5a(23) (core functionalities) and Article 5c(6) (certification). As long as either one is missing, the period does not begin to run. The same anchor governs Article 5f(2) (36 months) and Article 45e(1).

“each Member State shall provide at least one European Digital Identity Wallet within 24 months of the date of entry into force of the implementing acts referred to in paragraph 23 of this Article and in Article 5c(6)”

✓ Article 5a(1)

Article 5f(2) eIDAS Acceptance obligation of certain private entities

Covers private relying parties that are required by Union law, national law or contractual obligation to use strong user authentication – the areas mentioned include transport, energy, banking, financial services, social security, health, digital infrastructure, education and telecommunications. Microenterprises and small enterprises are excluded; acceptance takes place only upon the voluntary request of the user. Deadline: 36 months from the same anchor as Article 5a(1).

“Where private relying parties that provide services, with the exception of microenterprises and small enterprises”

✓ Article 5f(2)

Article 45e(1) eIDAS Verification of attributes against authentic sources

Requires the Member States to ensure that, at least for the eleven attributes listed in Annex VI – in so far as they rely on authentic sources within the public sector – electronic verification is possible at the request of the user. Without access to registers, an electronic attestation of attributes would be a mere assertion. Deadline: the same 24-month anchor as Article 5a(1).

AUDIT CHECK **Has the certification implementing act been adopted – and does it cover the certification under paragraphs 1, 2 and 3?****KEY POINT** **The clock only starts running once BOTH implementing acts are in force: 5a(23) AND 5c(6).**

5c · Abs. 7

SHALL

 L2

TOPIC **Communication of the conformity assessment bodies**

ADDRESSEE *Member State / Commission*

CONTENT Member States shall communicate to the Commission the names and addresses of the designated conformity assessment bodies (CABs); the Commission shall make that information available to all Member States.

PURPOSE *Only bodies that are known can be recognised across borders.*

- CROSS-REFERENCES
- Article 12a(6) eIDAS** **Communication of the assessment bodies**

Requires the Member States to communicate to the Commission the names and addresses of the conformity assessment bodies they have designated. The parallel provisions are found in Article 5c(7), Article 20(1b) and Article 30(2).
- Article 20(1b) eIDAS** **Notification of the conformity assessment bodies**

Requires the Member States to notify the Commission without undue delay of the names, addresses AND ACCREDITATION details of the conformity assessment bodies, as well as of any changes thereto; the Commission makes that information available to all Member States. The fact that accreditation details are also subject to notification was added by eIDAS 2.0.
- Article 30(2) eIDAS** **Notification of the designated bodies**

Requires the Member States to communicate to the Commission the names and addresses of the public or private bodies designated for the certification of qualified electronic signature creation devices; the Commission makes that information available to all Member States.

AUDIT CHECK **Is the certifying body included in the list that has been communicated?**

KEY POINT **The same notification mechanism appears in 12a(6), 20(1b) and 30(2).**

5c · Abs. 8 Auftrag Kommission



TOPIC **Delegated act on criteria for conformity assessment bodies**

ADDRESSEE *Commission*

CONTENT The Commission shall be empowered to adopt **DELEGATED** acts in accordance with Article 47 establishing specific criteria to be met by the designated conformity assessment bodies (CABs).

PURPOSE *Caution: this is a delegated act (Article 47), not an implementing act (Article 48) – a different procedure and a different right of veto.*

CROSS-REFERENCES **Article 30(4) eIDAS**

Delegated act on the designated bodies
Empowers the Commission to adopt delegated acts in accordance with Article 47 establishing specific criteria to be met by the designated bodies – the same construction as in Article 5c(8) for the conformity assessment bodies for European Digital Identity Wallets.

Article 47 eIDAS Exercise of the delegation

Governs the procedure for delegated acts: the duration of the delegation, revocation at any time by the Parliament or the Council, the consultation of experts and the period for objection within which the Parliament or the Council may raise objections. The Regulation refers to Article 47 in only three places: Article 5c(8), Article 24(4b) and Article 30(4).

AUDIT CHECK **Does paragraph 8 empower a delegated act or an implementing act – and which Article governs that procedure?**

KEY POINT **47 = delegated, 48 = implementing. Paragraph 8 takes the 47 route.**

5d · Abs. 1

SHALL

 L2

TOPIC

Notification of certified and withdrawn European Digital Identity Wallets

ADDRESSEE

Member State

CONTENT

Member States shall inform the Commission **AND** the Cooperation Group **WITHOUT UNDUE DELAY** of certified European Digital Identity Wallets and of any **CANCELLATION** of a certification, stating the reasons.

PURPOSE

The revocation must become public just as quickly as the authorisation – otherwise relying parties will continue to rely on a withdrawn European Digital Identity Wallet.

DEADLINE

without undue delay

CROSS-REFERENCES

Article 5c(1) Subject matter of certification

Defines exhaustively what is certified: the conformity of the European Digital Identity Wallet AND of the electronic identification scheme with Article 5a(4), (5) and (8), with the requirement for logical separation under paragraph 14 and, where applicable, with the standards under paragraph 24. Everything else in Article 5a is subject to supervision under Article 46a, not to certification. The number sequence 4-5-8-14 is the practical mnemonic anchor.

Article 5e(4) Publication of the amendment to the list

Requires the Commission to publish the corresponding amendments to the list referred to in Article 5d in the Official Journal of the European Union without undue delay. Delayed publication would itself be a security problem, because relying parties would continue to rely on a suspended European Digital Identity Wallet.

Article 46e eIDAS European Digital Identity Cooperation Group

Establishes the Cooperation Group in which the Member States coordinate practical application. It facilitates peer review and the exchange of experience and issues opinions and recommendations – inter alia on the draft national European Digital Identity Wallet certification schemes under Article 5c(3) and on the notifications under Article 5d.

AUDIT CHECK

Is the withdrawal notified as well – or only the initial certification?

KEY POINT

Notification means: in AND out.

5d · Abs. 2 a-e

SHALL

L2

TOPIC **Minimum content of the notification**

ADDRESSEE *Member State*

CONTENT The notification shall include at least (a) the certificate and certification assessment report, (b) a description of the electronic identification scheme, (c) the applicable supervisory regime and the **LIABILITY REGIME**, (d) the responsible authority or authorities, (e) arrangements for suspension or revocation.

PURPOSE *Almost identical in wording to Article 9(1) (notification of electronic identification schemes) – the European Digital Identity Wallet follows the same transparency logic.*

CROSS-REFERENCES **Article 9(1) eIDAS**

Content of the notification Seven items, points (a) to (g), including the description of the scheme with its assurance levels, the supervisory regime together with the liability regime, set out separately for the issuer and the operator of the authentication procedure, the responsible authorities, the entity managing the registration of the person identification data (PID) and the arrangements for suspension and revocation. Almost congruent with Article 5d(2) for European Digital Identity Wallets – the same notification logic in two regimes.

Article 5a(19) Liability reference

Provides that Article 11 shall apply mutatis mutandis – without prejudice to paragraph 22. The European Digital Identity Wallet therefore follows the liability regime of electronic identification and not that of trust services under Article 13.

AUDIT CHECK **Are all five items present, in particular the liability regime under point (c)?**

KEY POINT **5d(2) is the twin of 9(1). Learn it once, know it twice.**

5d · Abs. 3

SHALL

L1

TOPIC

List of certified European Digital Identity Wallets

ADDRESSEE

Commission

CONTENT

The Commission shall establish, publish in the **OFFICIAL JOURNAL** and maintain in a **MACHINE-READABLE** form a list of the certified European Digital Identity Wallets.

PURPOSE

A central, official reference – the counterpart to the trusted list under Article 22.

CROSS-REFERENCES

Article 9(2) eIDAS Publication of the list of schemes

Requires the Commission to publish the list of notified electronic identification schemes in the Official Journal of the European Union without undue delay. Only that publication triggers the obligation of recognition under Article 6.

Article 22 eIDAS Trusted lists

Requires each Member State to establish, maintain and publish lists of the qualified trust service providers and of the qualified trust services provided by them – in a secured manner, electronically signed or sealed and in a form suitable for automated processing. The information on the body responsible for the list, the place of publication and the signature certificates is to be notified to the Commission without undue delay, and the Commission in turn makes it available in a secured manner and in a form suitable for automated processing.

AUDIT CHECK

Is the European Digital Identity Wallet included in the list published in the Official Journal?

KEY POINT

EUDI Wallets -> list under 5d. Qualified trust services -> Article 22. Two lists.

5d · Abs. 4-6

SHALL

 L2

TOPIC **Removal, updating, deadlines**

ADDRESSEE *Member State / Commission*

CONTENT Paragraph 4: a Member State **MAY** submit a request for removal. Paragraph 5: where there are changes, the Member State shall provide updated information. Paragraph 6: the Commission shall publish the amendments **WITHIN ONE MONTH** of receipt of the request or of the updated information.

PURPOSE *Sets a hard processing deadline to prevent the list from becoming outdated.*

DEADLINE **1 month (Commission)**

CROSS-REFERENCES **Article 9(3) eIDAS One-month deadline for amendments**
Requires the Commission to publish amendments to the notified information in the Official Journal of the European Union within one month of receipt of the notification. The same one-month deadline applies under Article 5d(6) to European Digital Identity Wallets and under Article 31(1) to electronic signature creation devices.

AUDIT CHECK **Were the amendments notified and published within the deadline?**

KEY POINT

One month – the same deadline as for electronic identification schemes under Article 9.

5d · Abs. 7 Auftrag Kommission

☐ L3

TOPIC

Implementing act on formats and procedures

ADDRESSEE

Commission

CONTENT

Implementing act on the formats and procedures for the purposes of paragraphs 1, 4 and 5, within the framework of the implementing act on European Digital Identity Wallets under Article 5a(23).

PURPOSE

Notifications must be capable of automated processing, otherwise the procedure does not scale.

DEADLINE

by 21 November 2024

CROSS-REFERENCES

Article 5a(23)

Implementing act on the core European Digital Identity Wallet requirements for European Digital Identity Wallets The most important empowering provision of the Regulation in practice. The Commission establishes reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – this is the legal basis of the Architecture and Reference Framework. It is at the same time one of the two triggers of the 24-month deadline in paragraph 1. Numerous other provisions (5b(11), 5d(7), 5e(5), 45d(5), 45e(2), 45f(6) and (7)) expressly require alignment with that act.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23) eIDAS

AUDIT CHECK

Has the implementing act been adopted?

KEY POINT

Format follows obligation.



5e · Abs. 1

SHALL

L1

TOPIC **Immediate suspension in the event of compromise**

ADDRESSEE *Member State*

CONTENT Where the European Digital Identity Wallet, the validation mechanisms referred to in Article 5a(8) or the underlying electronic identification scheme are breached or partly compromised in a manner that affects reliability, the Member State **SHALL SUSPEND** the provision **AND** the use **WITHOUT UNDUE DELAY**. Where justified by the severity, it **SHALL WITHDRAW** the Wallets without undue delay. The following are to be informed: the users affected, the single points of contact under Article 46c, the relying parties and the Commission.

PURPOSE *A compromised European Digital Identity Wallet immediately endangers the entire EU-wide network of trust – a standstill is the lesser evil here.*

DEADLINE **without undue delay**

CROSS-REFERENCES **Article 5a(6) Informing users of security breaches**
Requires the Member State to inform users without delay of any security breach that could have entirely or partially compromised their European Digital Identity Wallet or its contents – in particular where it has been suspended or revoked pursuant to Article 5e. The obligation is owed to the user and must be distinguished from notification to the authorities.

Article 5a(8) Free-of-charge validation mechanisms
Requires the Member State to provide two free-of-charge verification paths running in opposite directions: point (a) allows verification that a presented European Digital Identity Wallet is authentic and valid; point (b) allows the user to verify that the requesting relying party is registered and authentic. Without this two-way verifiability, Article 5b(8) (self-identification of the relying party) could not be verified. It forms part of the subject matter of certification under Article 5c(1).

Article 46c eIDAS Single points of contact
Requires each Member State to designate, publish and notify to the Commission a single point of contact for trust services, European Digital Identity Wallets and notified electronic identification schemes. Cross-border supervision needs a defined contact point; the single point of contact is, inter alia, an addressee of the notifications under Article 5e.

Relevance here: the single point of contact is one of the four mandatory addressees of the notification.

Article 10 eIDAS Security breach of electronic identification schemes
Requires the notifying Member State, where a compromise affects reliability, to suspend or revoke the cross-border authentication without delay and to inform the other Member States and the Commission. Once the breach is remedied, cross-border authentication is to be re-established; if it is not remedied for three months, the withdrawal of the scheme is to be notified. The parallel provision for European Digital Identity Wallets is Article 5e.

AUDIT CHECK **Is there a tested emergency process covering all four groups of addressees?**

KEY POINT **Four addressees: user, single point of contact, relying party, Commission.**

5e · Abs. 2

SHALL

L1

TOPIC **Withdrawal after THREE months**

ADDRESSEE *Member State*

CONTENT If the security breach is not remedied within **THREE MONTHS** of the suspension, the Member State **SHALL WITHDRAW** the European Digital Identity Wallets and **SHALL REVOKE** their validity; the same four groups of addressees are to be informed again.

PURPOSE *Sets a hard upper limit on states of limbo.*

DEADLINE **3 months**

CROSS-REFERENCES **Article 10(3) eIDAS** **Withdrawal of the electronic identification scheme after three months**

The mirror image of Article 5e(2). If, after suspension or revocation, the breach is not remedied within three months, the notifying Member State notifies the withdrawal of the scheme; the Commission publishes the amendment in the Official Journal of the European Union without undue delay.

“three months of the suspension or revocation, the notifying Member State shall notify other Member States and the Commission of the withdrawal of the electronic identification scheme”

✓ Article 10(3) eIDAS

Relevance here: an identical three-month deadline – the European Digital Identity Wallet and a notified electronic identification scheme are treated with equal strictness.

Article 12a(3) eIDAS **Five years, two years, three months**

A more precise variant of the 5/2 rule: the certification of an electronic identification scheme is valid for up to five years provided that a vulnerability assessment is carried out every two years; where a vulnerability is not remedied within three months of its identification, the certification is to be cancelled. At the same point Article 5c(4) says only 'in a timely manner', and Article 30(3a) gives no deadline at all – a popular exam topic.

Article 5a(9)

Grounds for revocation Names three circumstances in which it must be possible to revoke the validity of the European Digital Identity Wallet: the explicit request of the user, the compromise of its security, and the death of the user or the cease of activity of the legal person.

Article 3 eIDAS

Definitions Contains the legal definitions in points (1) to (57), supplemented by the letter-suffixed points inserted by eIDAS 2.0, such as (5a), (16a) and (21a). Particularly important in practice: point (3) person identification data, point (5a) user, point (6) relying party, point (16) trust service, point (20) qualified trust service provider, point (44) electronic attestation of attributes, point (46) electronic attestation of attributes issued by or on behalf of a public sector body responsible for an authentic source and point (47) authentic source.

AUDIT CHECK **Is the 3-month deadline monitored and documented?**

KEY POINT **THREE months, not six – the same limit as Article 10(3).**

5e · Abs. 3

SHALL

 L2

TOPIC **Re-establishment**

ADDRESSEE *Member State*

CONTENT Once the breach has been remedied, the providing Member State (MS) shall **RE-ESTABLISH** the provision and the use and shall inform the users, the relying parties (RPs), the single point of contact and the Commission without undue delay.

PURPOSE *The state of emergency must also be capable of coming to an end – with the same transparency.*

DEADLINE **without undue delay**

CROSS-REFERENCES **Article 10(2) eIDAS**
Re-establishment Requires the notifying Member State to re-establish cross-border authentication once the breach has been remedied and to inform the other Member States and the Commission without undue delay. The state of emergency must also be capable of coming to an end – with the same transparency as its imposition.

AUDIT CHECK **Is the restart process documented to the same standard as the shutdown process?**

KEY POINT **Switching off and switching back on – both routes are subject to notification.**

5e · Abs. 4-5 Auftrag Kommission



TOPIC Publication + implementing act

ADDRESSEE Commission

CONTENT Paragraph 4: The Commission shall publish the corresponding amendments to the list referred to in Article 5d in the Official Journal **WITHOUT UNDUE DELAY**. Paragraph 5: implementing act on reference standards, specifications and procedures for the measures referred to in paragraphs 1, 2 and 3.

PURPOSE *The state of the list must mirror the state of security.*

DEADLINE **Paragraph 5: by 21 November 2024**

CROSS-REFERENCES **Article 5d(3) Official Journal list of certified European Digital Identity Wallets**

Requires the Commission to establish, publish in the Official Journal and maintain a machine-readable list of certified European Digital Identity Wallets. That list is the central official reference and is not to be confused with the trusted list under Article 22.

Article 5a(23)

Implementing act on the core European Digital Identity Wallet requirements for the European Digital Identity Wallet The most important empowering provision of the Regulation in practice. The Commission lays down reference standards, specifications and procedures for paragraphs 4, 5, 8 and 18 – this is the legal basis of the Architecture and Reference Framework. At the same time it is one of the two triggers of the 24-month period under paragraph 1. Numerous further provisions (Article 5b(11), Article 5d(7), Article 5e(5), Article 45d(5), Article 45e(2), Article 45f(6) and (7)) expressly require alignment with that act.

“the Commission shall, by means of implementing acts, establish a list of reference standards and, where necessary, establish specifications and procedures for the requirements referred to in paragraphs 4, 5, 8 and 18 of this Article”

✓ Article 5a(23) eIDAS

AUDIT CHECK **Does the Official Journal list reflect the current suspension status?**

KEY POINT **The list = the truth. Delayed publication is a security problem.**

5f · Abs. 1

SHALL

L1

TOPIC **Public sector obligation to accept**

ADDRESSEE *Member States / public sector bodies*

CONTENT Where Member States (MS) require electronic identification and authentication for access to an online service provided by a public sector body, they shall **ALSO ACCEPT** European Digital Identity Wallets.

PURPOSE *Without an obligation to accept there would be no pressure to use it – the European Digital Identity Wallet needs use cases in order to achieve uptake.*

DEADLINE **no separate deadline – follows Article 5a(1)**

CROSS-REFERENCES **Article 6 eIDAS Mutual recognition**
Establishes the obligation to recognise notified electronic identification means from other Member States where the scheme is included in the list published by the Commission, where its assurance level is at least substantial and corresponds to the level required, and where the public sector body itself uses assurance level substantial or high. Recognition must take place no later than twelve months after publication of the list. For assurance level low, recognition is merely optional (a 'may' recognition).

Article 45c eIDAS
An electronic attestation of attributes does not replace electronic identification
Primarily a prohibition subject to authorisation: person identification data from an electronic attestation of attributes (EAA) may not replace the electronic identification, together with authentication, required under national law – unless the Member State expressly permits this. Only then does the legal consequence follow that qualified electronic attestations of attributes from other Member States must also be accepted. The widespread reading of the provision as a mere obligation to accept is incorrect.

AUDIT CHECK **Does the service actually accept the European Digital Identity Wallet – or only the national electronic identification means?**

KEY POINT **Paragraph 1 the State, 2 private parties except micro/small, 3 very large platforms.**

5f · Abs. 2

SHALL

L1

TOPIC

Obligation of certain private relying parties to accept

ADDRESSEE

Private relying parties (except microenterprises and small enterprises)

CONTENT

Private relying parties (RPs) – **WITH THE EXCEPTION OF** microenterprises and small enterprises as defined in Recommendation **2003/361/EC** – which are required by Union law, national law **OR BY CONTRACTUAL OBLIGATION** to use **STRONG** user authentication for online identification shall accept the European Digital Identity Wallet. Sectors named: transport, energy, banking, financial services, social security, health, drinking water, postal services, digital infrastructure, education, telecommunications. Only upon the **VOLUNTARY REQUEST OF THE USER**.

PURPOSE

Creates the market: only once banks, insurers and telecommunications operators are required to take the European Digital Identity Wallet does it become worthwhile for the citizen.

DEADLINE

36 months after the entry into force of the implementing acts referred to in Article 5a(23) and Article 5c(6)

CROSS-REFERENCES

Article 5a(15) Voluntary use and prohibition of discrimination

The core political condition of the European Digital Identity Wallet: nobody is obliged to use it, and those who do not use it may not be placed at a disadvantage in their access to services, in the labour market or in their freedom to conduct business. It forms the necessary counterweight to the obligations to accept under Article 5f – the service SHALL accept, the user NEED NOT use.

“The use of European Digital Identity Wallets shall be voluntary”

✓ Article 5a(15) eIDAS

Relevance here: Necessary counterweight: the service must accept, the user need not use.

Article 5a(1) Obligation to provide and deadline anchor

Establishes the central implementation obligation of Chapter II: every Member State must provide at least one European Digital Identity Wallet. The decisive element is the deadline mechanism – the 24 months do not run from the date of the Regulation, but from the entry into force of TWO implementing acts: Article 5a(23) (core functionalities) and Article 5c(6) (certification). As long as either of the two is missing, the period does not begin to run. The same anchor also governs Article 5f(2) (36 months) and Article 45e(1).

“each Member State shall provide at least one European Digital Identity Wallet within 24 months of the date of entry into force of the implementing acts referred to in paragraph 23 of this Article and in Article 5c(6)”

✓ Article 5a(1) eIDAS

AUDIT CHECK

Does the undertaking fall under the obligation – or does the SME exemption apply? Is the deadline in the project plan?

KEY POINT

24 months to provide (5a(1)) – 36 months for private acceptance (5f(2)).

5f · Abs. 3

SHALL

 L2

TOPIC **Very large online platforms (VLOPs)**

ADDRESSEE *Providers of very large online platforms as referred to in Article 33 DSA*

CONTENT Where **VLOP** providers as referred to in Article 33 of Regulation (EU) 2022/2065 (DSA) require user authentication for access, they shall also **ACCEPT** and **FACILITATE** the use of the European Digital Identity Wallet – only upon the voluntary request of the user and only in respect of the **MINIMUM DATA** necessary for the specific service.

PURPOSE *Brings the large platforms on board without opening up additional flows of data to them.*

CROSS-REFERENCES **Article 33 DSA Very large online platforms and very large online search engines**

Covers services with an average of at least 45 million monthly active recipients in the Union – which corresponds to around 10 percent of the Union population. The Commission designates the providers concerned by decision and publishes the list in the Official Journal; the enhanced obligations apply four months after notification. Relation to eIDAS: the obligation to accept under Article 5f(3) eIDAS attaches exclusively to that formal designation. A platform which reaches the threshold but has not been designated does not fall within it. Summary of content, not verified against the original text

● summary, not verified against the original

DMA Regulation (EU) 2022/1925 – Digital Markets Act

Governs the obligations of so-called gatekeepers, that is to say large platform operators which have been formally designated by the Commission. Central to it are the definitions in Article 2 and the conduct obligations in Articles 5 to 7. Enforcement lies with the Commission, not with national supervisory bodies. Relation to eIDAS: Article 12b eIDAS connects directly to it: gatekeepers must grant providers of European Digital Identity Wallets and issuers of electronic identification means access to the same operating system, hardware and software features. Enforcement of that eIDAS obligation therefore runs through the DMA and not through eIDAS supervision. Summary of content, not verified against the original text

● summary, not verified against the original

Article 5b(3) Prohibition of over-asking

Makes the registration information under paragraph 2, point (c) legally binding: the scope of data registered is at the same time the maximum permissible scope. Purpose limitation under data protection law thereby becomes technically and supervisorily enforceable for the first time, instead of merely being asserted.

“shall not request users to provide any data other than that indicated pursuant to paragraph 2, point (c)”

✓ Article 5b(3)

Article 12b eIDAS Access to hardware and software features

Requires gatekeepers within the meaning of the Digital Markets Act to enable providers of European Digital Identity Wallets and issuers of notified electronic identification means to have effective interoperability with, and access to, the same operating system, hardware and software features – such as the secure element and the NFC interface. Under Article 6(7) DMA this is free of charge and irrespective of whether the feature forms part of the operating system. Without this provision, two platform operators could technically prevent compliance with the State's obligation to provide. It is enforced through the DMA, not through eIDAS supervision.

“gatekeepers shall in particular allow them effective interoperability with, and, for the purposes of interoperability, access to, the same operating system, hardware or software features”

✓ Article 12b eIDAS

AUDIT CHECK **Is the scope of data limited to the minimum in the case of VLOPs?**

KEY POINT **Three EU legal acts interlock: eIDAS, the DSA (paragraph 3), the DMA (Article 12b).**

5f · Abs. 4-5 Auftrag Kommission

☐ L3

TOPIC

Codes of conduct and evaluation

ADDRESSEE

Commission / Member States

CONTENT

Paragraph 4: The Commission shall **FACILITATE** the development of codes of conduct with all relevant stakeholders, including civil society.
Paragraph 5: **WITHIN 24 MONTHS** after deployment of the European Digital Identity Wallet, the Commission shall assess the demand for, and the availability and usability of, the European Digital Identity Wallet, taking into account criteria such as user take-up, cross-border presence, technological development and consumer demand.

PURPOSE

Built-in monitoring of success – the basis for a possible tightening of the obligations to accept. Not audit-relevant, but strategic: this is where the pressure for eIDAS 3 arises.

DEADLINE

Paragraph 5: 24 months after deployment of the European Digital Identity Wallet

CROSS-REFERENCES

Article 49 eIDAS
Review Requires the Commission to review the application of the Regulation at regular intervals and to report to the Parliament and the Council. eIDAS 2.0 emerged from this built-in review clause; together with the assessment under Article 5f(5) it is the starting point for a possible further amendment.

AUDIT CHECK

Which two tasks do paragraphs 4 and 5 place on the Commission – and from when does the 24-month evaluation period run?

KEY POINT

Soft law (codes) plus evaluation – the preparatory pattern for the next amendment.

